

**IN THE LABOUR COURT OF SOUTH AFRICA
HELD AT CAPE TOWN**

CASE NO: [To be assigned]

In the matter between:

WILBUR WILLIAM MATTHEE

Applicant

and

MEDSCHEME HOLDINGS (a Division of Afrocentric Health (Pty) Ltd)

Respondent

FOUNDING AFFIDAVIT

PART A: STATUTORY FRAMEWORK

This affidavit is grounded in, and each claim herein is anchored to, the following legislative framework applicable in the Republic of South Africa. Where facts are averred, the relevant statutory provision governing that averment is identified at the outset of each material paragraph or section.

A1. Labour Relations Act 66 of 1995 (LRA)

STATUTORY BASIS: LRA s187(1)(h) — *A dismissal is automatically unfair if the employer, in dismissing the employee, acts contrary to section 5 of the LRA, or if the reason for dismissal is that the employee made a protected disclosure as defined in the Protected Disclosures Act 26 of 2000.*

The Applicant submits that his constructive dismissal on 12 December 2025 was automatically unfair in terms of section 187(1)(h) of the LRA, the dominant reason

being the Respondent's sustained retaliation against the Applicant for making protected disclosures.

STATUTORY BASIS: LRA s186(1)(e) — *Constructive dismissal arises where an employee terminates employment with or without notice because the employer made continued employment intolerable.*

The Applicant further relies on section 186(1)(e) of the LRA, submitting that the cumulative effect of the Respondent's conduct — as fully particularised in Part B hereof — rendered continued employment objectively intolerable.

STATUTORY BASIS: LRA s186(2)(a) — *An unfair labour practice includes any unfair act or omission that arises between an employer and an employee involving the unfair conduct of the employer relating to the promotion, demotion, probation, training, or the provision of benefits of an employee.*

The Applicant further relies on section 186(2)(a) in respect of the Respondent's unlawful deductions and its failure to provide reasonable accommodation as constituting unfair conduct relating to benefits.

A2. Basic Conditions of Employment Act 75 of 1997 (BCEA)

STATUTORY BASIS: BCEA s34(1) — *An employer may not make deductions from an employee's remuneration unless agreed in writing and relates to a debt specified in the agreement, or is required or permitted by law.*

The Applicant avers that the deduction of R14,811.77 effected in July 2025, representing 40.47% of gross remuneration, was made without the Applicant's prior written consent and in direct contravention of section 34(1) of the BCEA. No written deduction agreement existed.

STATUTORY BASIS: BCEA s34(2) — *A deduction for overpayment of remuneration may not exceed one-quarter of the employee's remuneration in money.*

The Respondent's own internal policy mirrored this legislative protection. Despite this, the Respondent knowingly exceeded the 25% cap, as evidenced by the Teams communication of 24 July 2025 in which line manager Ms. Jones acknowledged but dismissed the statutory limit.

A3. Protected Disclosures Act 26 of 2000 (PDA)

STATUTORY BASIS: PDA s1 — Definition of Occupational Detriment — *Includes being subjected to any disciplinary action; dismissed; suspended; demoted; harassed or intimidated; transferred; refused transfer or promotion; subjected to a term or condition of employment that disadvantages the employee; or being otherwise adversely affected in respect of employment, profession, or office.*

The Applicant avers that the Respondent subjected him to occupational detriment as defined in section 1 of the PDA in direct response to multiple protected disclosures, including: disclosure of duplicate LACE file inefficiencies (March 2025); the

Gexus/DMS patient safety failure (October 2025); and the P1 Material Risk Report to the Board (December 2025).

STATUTORY BASIS: PDA s3 — *No employee may be subjected to an occupational detriment by his or her employer on account of having made a protected disclosure.*

Each act of financial victimisation, disciplinary threat, hostile management conduct, and the defamatory opposing affidavit of 10 December 2025 constitutes occupational detriment directly causally linked to the Applicant's protected disclosures.

STATUTORY BASIS: PDA s9 — *A disclosure to any person other than the employer is protected where the employee reasonably believes he or she will be subjected to an occupational detriment if the disclosure is made to the employer, or that evidence relating to the disclosure is likely to be concealed or destroyed.*

All external escalations to regulatory bodies (JSE, FSCA, SAHRC, CMS, B-BBEE Commission, and DEL) and to the Board of Directors were made in fulfilment of the requirements of section 9 of the PDA, following more than 30 days of institutional silence in response to internal grievances.

A4. Employment Equity Act 55 of 1998 (EEA)

STATUTORY BASIS: EEA s6(1) — *No person may unfairly discriminate, directly or indirectly, against an employee in any employment policy or practice, on one or more grounds, including race, gender, sex, pregnancy, marital status, family responsibility, ethnic or social origin, colour, sexual orientation, age, disability, religion, HIV status, conscience, belief, political opinion, culture, language, birth or on any other arbitrary ground.*

The Applicant avers unfair discrimination on two grounds: (i) gender identity, arising from the deliberate and public misgendering of the Applicant as 'Wilma' on 23 September 2025; and (ii) disability, arising from the Respondent's consistent dismissal of the Applicant's documented psychiatric condition (Severe Major Depressive Disorder and PTSD) as an 'excuse' and 'afterthought' in sworn affidavit proceedings.

STATUTORY BASIS: EEA s7 — Reasonable Accommodation — *An employer must take steps to reasonably accommodate the needs of employees from designated groups in order to ensure that they enjoy equal opportunities and are equitably represented in the workplace.*

Despite formal notification of the Applicant's psychiatric condition via medical report (Dr. Jacques Malan, 16 May 2025), the Respondent failed at every stage to provide reasonable accommodation, instead opting for punitive unpaid leave and salary deductions. This constitutes a failure to meet the statutory obligation under section 7 of the EEA.

A5. Occupational Health and Safety Act 85 of 1993 (OHSA)

STATUTORY BASIS: OHSA s8(1) — *Every employer shall provide and maintain, as far as is reasonably practicable, a working environment that is safe and without risk to the health of his employees.*

The Applicant avers that the Respondent breached its duty of care under section 8(1) of OHSA by: (i) continuing to impose punitive administrative measures during documented medical crises; (ii) refusing to adjust working conditions notwithstanding full knowledge of the Applicant's deteriorating psychiatric health; and (iii) penalising a colleague for a medical emergency in the workplace (May 2025), evidencing a systemic culture of disregard for employee safety.

A6. Constitutional Framework — Constitution of the Republic of South Africa, 1996

STATUTORY BASIS: Section 10 — Dignity — *Everyone has inherent dignity and the right to have their dignity respected and protected.*

STATUTORY BASIS: Section 12(2) — Psychological Integrity — *Everyone has the right to bodily and psychological integrity, which includes the right to security in and control over their body.*

STATUTORY BASIS: Section 23(1) — Fair Labour Practices — *Everyone has the right to fair labour practices.*

STATUTORY BASIS: Section 27 — Access to Healthcare — *Everyone has the right to have access to health care services.*

The Respondent's conduct violated each of the above constitutional rights. The public character assassination in sworn proceedings, the deliberate misgendering, the refusal to accommodate a documented psychiatric disability, the obstruction of UIF benefits, and the financial destitution caused by unlawful deductions collectively constitute a sustained assault on the Applicant's constitutional rights.

A7. Unemployment Insurance Contributions Act 4 of 2002 (UICA)

STATUTORY BASIS: UICA s6 — Employer's obligation to declare and pay contributions — *Every employer must, on or before the 7th day of each month, pay to the Unemployment Insurance Fund the contributions due in respect of the preceding month.*

The Applicant avers that the Respondent deducted R177.12 in UIF contributions for June 2025 but failed to declare or remit same to the Fund by the statutory deadline of 7 July 2025. The Applicant's uFiling record confirms this non-compliance (Annexure SCR0). This directly prejudiced the Applicant's access to social security entitlements.

PART B: FOUNDING AFFIDAVIT

I, **WILBUR WILLIAM MATTHEE**, do hereby make oath and state as follows, grounding each averment in the applicable statutory provisions identified in Part A above:

1. INTRODUCTION

1.1 I am the Applicant in this matter, an adult male, formerly employed by the Respondent as Case Manager (Health Services Management Nurse Specialist) within the GEMS Active Disease Risk Management Unit, Cape Town. The Respondent is Medscheme Holdings Proprietary Limited (Registration Number: 1970/015014/07), a division of Afrocentric Health (Pty) Ltd, 37 Conrad Street, Florida North, Roodepoort, 1709.

1.2 I am a qualified Nurse Specialist with formal qualifications including a Postgraduate Diploma in Health Services Management (CPUT), a Bachelor of Technology in Nursing (BTech Gen Pn) with competencies in Psychiatry, Midwifery and Community Nursing (R425), and acceptance for postgraduate Occupational Health Nursing studies commencing in 2026 (Annexure CPUT1).

1.3 This professional background is central to the present matter. The protected disclosures I made were not speculative but were firmly grounded in my specialist clinical knowledge. My professional standing is evidenced by, inter alia, the 2019 Excellence in Customer Service Award (Mitchell's Plain District Hospital) and the clinical commendation at Annexure RESU1.

STATUTORY BASIS: PDA s1 read with LRA s187(1)(h) — *The protected disclosures made herein trigger the protections of the PDA and, upon constructive dismissal, engage the automatically unfair dismissal provisions of the LRA.*

1.4 At the time of my dismissal I was awaiting a formal response regarding my application for postgraduate studies in Occupational Health Nursing. Immediately following submission of final documentation, the retaliation against me escalated dramatically, evidencing a direct causal nexus between my professional advancement, my protected disclosures, and the occupational detriment subsequently imposed.

1.5 I am currently self-represented, having been rendered destitute by the Respondent's unlawful conduct, which has left me homeless and without means to retain legal representation. Termination date: 12 December 2025 (Annexure RES1).

1.6 The facts contained herein are, to the best of my knowledge and belief, true and correct. This affidavit is accompanied by Annexures A1–L8, which are authentic documents generated by me, addressed to me, or forming part of the Respondent's official records.

2. BACKGROUND AND EMPLOYMENT

STATUTORY BASIS: BCEA s29 — Written particulars of employment — *An employer must supply each employee with written particulars of employment, and any variation of employment terms must be agreed in writing.*

2.1 I commenced employment with the Respondent on 1 May 2024, in the capacity of Case Manager, at a Cost to Company (CTC) of R42,796.13 per month (Annexure ANI1). My employment particulars, as reflected in the Respondent's own payroll and HR records, confirm this designation. Any deviation from this designation in subsequent documentation — including the Certificate of Service — constitutes misrepresentation in breach of the Respondent's statutory obligations under the BCEA.

2.2 In my capacity as Case Manager, I was entrusted with: implementing outcomes-based disease management programmes; conducting active disease risk management for GEMS members; ensuring compliance with healthcare protocols; and safeguarding both patient welfare and organisational integrity.

2.3 PROFESSIONAL LEADERSHIP — During my tenure, I was formally nominated as Lead First Aider and Acting Chairperson of the Employee Health and Safety (EHS) Committee, exercising direct oversight over 13 staff members across three operational floors (Annexure EHS-LEAD1, EHS-ROSTER1). This constitutes de facto managerial authority inconsistent with the lesser designation of 'Care Coordinator' subsequently applied by the Respondent in post-resignation statutory documentation.

STATUTORY BASIS: SANC Regulation 1569 — CPD Obligations — *All registered nurses must comply with mandatory Continuous Professional Development obligations. Employers bear a duty to facilitate compliance.*

2.4 In April 2025, I identified the Respondent's non-compliance with SANC Regulation 1569 and authored a proposal for digitised CPD compliance (Annexure CPD1). Despite its initial rejection, the Respondent implemented this exact model across the business unit in October 2025 without acknowledgement of my authorship, constituting institutional exploitation and bad faith.

3. CHRONOLOGY OF PROTECTED DISCLOSURES AND RETALIATION

3.1 March 2025: Initial Threat and Disclosure

STATUTORY BASIS: PDA s1(1) — Protected Disclosure — *A 'protected disclosure' means any disclosure of information regarding the conduct of the employer which an employee reasonably believes constitutes improper conduct, made in accordance with the Act.*

3.1.1 On 6 March 2025, I raised concerns via Microsoft Teams regarding duplicate 'LACE' files, identifying a workflow inefficiency that diverted resources from member contact (Annexure M1). This constituted a disclosure of operational irregularity within the meaning of the PDA.

3.1.2 Prior to this, line manager Ms. Jones issued a veiled threat: 'This is the second time you are questioning me; do not let it happen again.' This threat was contemporaneously documented in my notebook (Annexure T1) and constitutes the first act of occupational detriment, in contravention of section 3 of the PDA.

3.2 May 2025: Medical Crisis and Formal Disclosure

STATUTORY BASIS: EEA s7 — Reasonable Accommodation / OHSA s8(1) — Employer's duty of care — *Upon receiving notice of a disability, an employer must take reasonable steps to accommodate the employee and ensure a safe working environment.*

3.2.1 I had been formally diagnosed by Dr. Jacques Malan (specialist psychiatrist) with Severe Major Depressive Disorder and PTSD, necessitating inpatient psychiatric treatment (Annexure MED1). The Respondent was placed on full notice of this condition.

3.2.2 Contrary to its obligations under section 7 of the EEA and section 8(1) of OHSA, the Respondent's response upon my return from initial psychiatric care was to communicate that 'the company does not stagger debt' and that I 'won't miss the chunk of money' (Annexure LIE1). This constituted a failure of reasonable accommodation and a breach of the duty of care.

3.2.3 On 7 May 2025, rather than adopting the statutory path of reasonable accommodation or incapacity leave, the Respondent elected to place me on unpaid leave — the most punitive available administrative option — thereby contravening its obligations under the EEA and the BCEA (Annexure MV1).

3.2.4 On 16 May 2025, formal medical report by Dr. Malan was provided to Ms. Mashele via email (Annexure EM1). No acknowledgement of receipt was issued. No steps were taken in respect of Ms. Jones. In October 2025, Ms. Mashele dismissed the Applicant's gender identity concerns as a 'typo' (Annexure TYPO), constituting ongoing discrimination in breach of section 6(1) of the EEA.

3.2.5 On 20 May 2025, a colleague experiencing a sudden medical emergency was compelled to take unpaid leave to obtain urgent medication (Annexure BDC1). This constitutes a breach of the Respondent's statutory duty under sections 8 and 9 of OHSA and is indicative of a broader pattern of disregard for employee health and safety.

3.2.6 On 21 May 2025, despite full awareness of my psychiatric crisis, the Respondent issued the 'Oracle Instruction' directing me to 'load unpaid leave' without reference to any alternative measures (Annexure RPM1). No reasonable accommodation was offered in breach of EEA section 7.

3.3 June 2025: Absence Management Review

STATUTORY BASIS: UICA s6 — UIF contribution obligations — *Employers must declare and remit UIF contributions by the 7th of each month. Failure to do so exposes the employer to penalties and deprives employees of access to social security.*

3.3.1 On 23 June 2025, the Respondent deducted R177.12 in UIF contributions yet failed to declare or remit same to the Fund by the statutory deadline of 7 July 2025, as confirmed by the Applicant's uFiling record (Annexure PS1). This constitutes a breach of section 6 of the UICA.

STATUTORY BASIS: BCEA s34(2) — Deduction cap / EEA s7 — Reasonable accommodation — *Salary deductions may not exceed 25% of remuneration; employers must mitigate financial impact on employees with disabilities.*

3.3.2 On 24 June 2025, during an Absence Management Review, the Respondent imposed a 40%+ deduction by 'bunching' all unpaid days into a single pay cycle. This directly contravened the 25% statutory cap under section 34(2) of the BCEA. In the context of an active psychiatric admission, this constituted a failure of reasonable accommodation under section 7 of the EEA and evidenced punitive intent (Annexure AMR1).

3.4 July 2025: Unlawful Financial Deductions

STATUTORY BASIS: BCEA s34(1) and s34(2) — Unlawful deductions — *Deductions require prior written consent and may not exceed 25% of remuneration.*

3.4.1 On 8 July 2025, the Respondent's uFiling record confirmed non-compliance with the UICA in respect of June 2025 contributions, which remain marked 'No Information' (Annexure SCR0).

3.4.2 On 14 July 2025, Ms. Jones confirmed via email that the difference in unpaid days would be deducted as a manual, calculated entry immediately prior to the July pay run — evidencing deliberate intent (Annexure SLR1).

3.4.3–3.4.5 On 23 July 2025, my payslip reflected a gross salary of R36,588.81, from which the Respondent deducted a total of R14,811.77 (Unpaid Leave Recovery: R13,824.32 + Unpaid Leave: R987.45), representing 40.47% of gross salary. This deduction was: (a) made without prior written consent, in contravention of section 34(1) of the BCEA; (b) effected while I was under active psychiatric care for a recognised disability, evidencing failure to provide reasonable accommodation under section 7 of the EEA; (c) made contrary to my express request for a staggered repayment plan; and (d) in direct contradiction of managerial assurances (Annexure LIE1). (Annexure PS2)

3.4.6 On 24 July 2025, Ms. Jones shared the company policy stating deductions must not exceed 25% of CTC 'as per legislation,' then, when confronted with the statutory breach, responded: 'What is illegal.' This exchange constitutes documentary evidence of knowledge of the illegality and malicious intent, aggravating the contravention of section 34 of the BCEA (Annexure POL1).

3.5 August 2025: Medical Vulnerability and Continued Breach

STATUTORY BASIS: OHSA s8(1) — Safe working environment / EEA s7 — Reasonable accommodation — *Employers must maintain a safe working environment and accommodate employees with disabilities.*

3.5.1 On 13 August 2025, line manager Ms. Govender documented that I was experiencing severe withdrawal symptoms and required physical assistance to reach the pharmacy (Annexure WNW1). This constitutes a documented workplace medical emergency of which management was fully aware.

3.5.2 Despite this documented medical emergency, Ms. Jones, on 15 August 2025, characterised emergency access to medication as a 'concession' and demanded strict time adherence, in explicit contravention of section 8(1) of OHS Act and section 7 of the EEA. Her own admission of awareness of the financial and medical impact of her actions constitutes evidence of malice under South African labour law (Annexure WNW2).

3.6 September 2025: Gender Identity Discrimination

STATUTORY BASIS: EEA s6(1) — Unfair discrimination on grounds of gender identity — *Direct or indirect discrimination on the ground of gender identity constitutes unfair discrimination. This extends to deliberate misgendering in the workplace.*

3.6.1 Following submission of my PGDip OHN application, workplace hostility intensified significantly. No response was ever provided by the Respondent, evidencing deliberate obstruction of career advancement in breach of section 6(1) of the EEA (Annexure CPUT1).

3.6.2–3.6.8 On 23 September 2025, after I successfully presented a 'Filtering Strategy' to the team which was positively received, Ms. Jones publicly misgendered me as 'Wilma' in a team-wide Microsoft Teams chat (Annexure SCR1). This was a deliberate act of public humiliation. In the same communication, she banned the filtering system, thereby constituting occupational detriment in contravention of sections 3 and 9 of the PDA, and unfair discrimination on the ground of gender identity under section 6(1) of the EEA.

3.6.3–3.6.5 On 25 September 2025, I formally reported the misgendering to Operational Manager Ms. Nkatane, who delegated the matter back to the perpetrator — Ms. Jones — thereby failing to provide an impartial remedy (Annexures ONE1, FR1). This failure constitutes a systemic breach of the Respondent's obligation to ensure a workplace free from discrimination under the EEA and the Constitution.

3.6.5 On 29 September 2025, Ms. Jones processed a double punitive unpaid leave entry for 25 September 2025 — the precise date I lodged my formal discrimination complaint. This constitutes retaliation and occupational detriment under section 3 of the PDA, directly linked to the exercise of my statutory right to report discrimination (Annexure ULP1).

3.6.6 1 October 2025 — The Mashele Intervention: Institutional Minimisation and Admission of Wrongdoing

STATUTORY BASIS: EEA s60 — Employer vicarious liability for acts of discrimination / EEA s6(1) — Unfair discrimination on grounds of gender identity / PDA s3 — Prohibition on occupational detriment — *An employer who, upon becoming aware of discriminatory conduct by a manager, fails to take adequate remedial steps is vicariously liable for that conduct under section 60 of the EEA. The characterisation of deliberate discrimination as a typographical error — without investigation, disciplinary action, or formal acknowledgement — does not constitute adequate remedial steps and reinforces rather than cures institutional liability.*

3.6.6 On 1 October 2025, senior manager Ms. Mashele intervened in response to the Applicant's formal discrimination complaint of 25 September 2025. Her intervention produced two simultaneous and contradictory outcomes, each of which is individually significant and jointly devastating to any defence the Respondent may advance:

(i) DEDUCTION REVERSAL — ADMISSION OF INTENTIONAL LOADING: Ms. Mashele issued a directive to Ms. Jones instructing her to remove the double punitive unpaid leave entry that had been loaded on 29 September 2025 — the exact date of the Applicant's formal discrimination complaint (Annexure E6 / ULP1). This reversal is not a neutral administrative correction. It is an institutional admission that the original loading was improper — an entry that could only have been reversed by managerial instruction if it had been manually and deliberately loaded in the first place. A legitimate system-generated entry cannot be 'uninstructed' by a senior manager. The reversal therefore constitutes direct evidence that: (a) Ms. Jones exercised full discretionary control over the Applicant's payroll; (b) the 29 September entry was retaliatory, not administrative; and (c) the Respondent had the means and authority to correct unlawful conduct at any point but chose not to do so consistently across the preceding five months.

(ii) 'TYPO' DISMISSAL — INSTITUTIONAL MINIMISATION OF DISCRIMINATION: In the same intervention, Ms. Mashele characterised the deliberate public misgendering of 23 September 2025 as a mere 'typo' (Annexure D5 / TYPO) and asserted that the Applicant and Ms. Jones had 'never had any previous problem.' This characterisation is both factually false and legally insufficient as a remedial response, for the following reasons set out in paragraphs 3.6.7 to 3.6.9 below.

STATUTORY BASIS: EEA s11 — Reversed onus of proof in unfair discrimination disputes / EEA s60(2) — Employer's obligation to take reasonable steps — *Once prima facie discrimination is established, the onus shifts to the employer to prove the conduct was not discriminatory. Dismissing discrimination as a 'typo' without investigation, without formal apology, and without disciplinary action does not discharge this onus. It compounds it.*

3.6.7 The 'typo' characterisation is factually unsustainable on the face of the evidence for the following reasons:

(i) DELIBERATE CONTEXT: The misgendering did not occur in isolation. It occurred immediately after the Applicant's Filtering Strategy was publicly praised by the team — and in the same message in which Ms. Jones banned that strategy. A person who types a team member's name incorrectly in a private message may make a typographical error. A manager who publicly uses a feminised version of a male employee's name — 'Wilma' for 'Wilbur' — in a team-wide channel, in the same breath as reversing a professionally successful initiative, is not making a typographical error. The two acts — misgendering and strategy suppression — in a single message constitute a coordinated act of public humiliation (Annexure D1 / SCR1).

(ii) PATTERN OF CONDUCT: The 'typo' explanation requires the Court to accept that Ms. Jones — a professional manager of sufficient seniority to

control payroll entries and chair operational reviews — accidentally confused 'Wilbur' with 'Wilma' in a professional team channel. This strains credulity against a documented background of: the March 2025 silencing threat (Annexure C1); the May 2025 refusal to stagger debt during psychiatric hospitalisation (Annexure E0); the June 2025 punitive 'bunching' deduction (Annexure E8); the July 2025 knowing statutory breach (Annexure E3); and the August 2025 'concession' response to a medical emergency (Annexure B6). Viewed in this context, the misgendering is not an isolated typographical error — it is the latest in a documented series of targeted acts.

(iii) 'NEVER HAD ANY PREVIOUS PROBLEM': Ms. Mashele's assertion that the Applicant and Ms. Jones had 'never had any previous problem' is directly contradicted by: the formal grievance of 25 September 2025 (Annexure F1); the medical report transmitted to Ms. Mashele herself on 16 May 2025 (Annexure B2); the psychiatric hospitalisation of May 2025 (Annexure B1); the Absence Management Review of June 2025 (Annexure E8); and the unlawful deduction of July 2025 (Annexure E2). Ms. Mashele was personally present at the May 2025 meeting during which the Applicant reported Ms. Jones's conduct and its financial impact. Her October 2025 assertion of no previous problem constitutes a deliberate misrepresentation of facts within her own knowledge.

STATUTORY BASIS: EEA s6(1) — Deliberate misgendering as gender identity discrimination / Constitution s10 — Dignity / PDA s3 — Occupational detriment linked to disclosure — Deliberate misgendering in a professional setting constitutes direct unfair discrimination on the ground of gender identity. Where it occurs immediately after a protected disclosure or professional initiative, and is accompanied by suppression of that initiative, it additionally constitutes occupational detriment under the PDA.

3.6.8 On or about 1 October 2025, the Applicant sent a formal rebuttal email to Ms. Mashele in response to the 'typo' characterisation (Annexure D2 / TYP1). In that email the Applicant made the following material averments, each of which is relevant to the present proceedings:

(i) **DELIBERATE LINKAGE TO FILTER PROPOSAL:** The Applicant expressly informed Ms. Mashele that the misgendering was not a typographical error but a deliberate act of retaliation directly linked to the Filtering Strategy proposal — a professional initiative that had been positively received by the team and that Ms. Jones had suppressed in the same message in which the misgendering occurred. The Applicant drew Ms. Mashele's attention to the temporal and contextual connection between the professional proposal, its suppression, and the public misgendering — establishing, in a contemporaneous written record, the Applicant's own reasonable belief in the retaliatory nature of the conduct.

(ii) **DELIBERATE IDENTITY DISCRIMINATION:** The Applicant expressly characterised the misgendering as deliberate identity discrimination — not an administrative error — and placed Ms. Mashele on formal notice that the Respondent's characterisation of the incident as a 'typo' was factually and

legally incorrect. This contemporaneous record is significant because it pre-dates these proceedings and establishes that the Applicant raised the identity discrimination issue internally, formally, and in writing, before any litigation was contemplated.

(iii) ESCALATION NOTICE: The Applicant's email further placed Ms. Mashele on notice that the matter would require escalation if the Respondent persisted in characterising discrimination as a typographical error without implementing a proper investigative and remedial process consistent with section 60 of the EEA. No such process was ever initiated by the Respondent.

STATUTORY BASIS: EEA s60(3) — Failure to take reasonable steps constitutes employer liability / LRA s187(1)(h) — Causal nexus between protected conduct and dismissal — *Where an employer fails to take reasonable steps after being placed on formal notice of discrimination, liability attaches to the employer for all subsequent acts of discrimination and occupational detriment. The employer cannot rely on a 'typo' defence where it has been expressly and formally told — in writing — that the conduct was deliberate.*

3.6.9 The combined effect of the events of 1 October 2025 is as follows and the Applicant submits that this Honourable Court should draw the following inferences:

(i) The Respondent, through Ms. Mashele, had actual knowledge by 1 October 2025 of: the double punitive deduction (which it reversed); the misgendering incident (which it dismissed as a typo); and the Applicant's express written contention that both acts were deliberate and retaliatory.

(ii) From 1 October 2025, every subsequent act of occupational detriment — the October patient safety disclosure being labelled 'insubordination,' the 31 October retaliatory meeting, the November grievance silence, the December defamatory affidavit — was committed by the Respondent with full institutional knowledge that it had already been formally notified of deliberate discrimination. The Respondent cannot claim ignorance of the pattern after 1 October 2025.

(iii) The Respondent's failure to take any meaningful remedial step after 1 October 2025 — no investigation, no apology, no disciplinary action against Ms. Jones, no amendment to the payroll policy — constitutes a failure to take 'reasonable steps' within the meaning of section 60(2) of the EEA. This failure transfers full vicarious liability for all subsequent acts of discrimination and retaliation to the Respondent as employer.

(iv) The Respondent cannot discharge the reversed onus under section 11 of the EEA by producing a single-line 'typo' response to a formal written discrimination complaint that the Applicant expressly and contemporaneously rebutted. On these facts, no reasonable tribunal could find that the discrimination was unintentional or that the Respondent took adequate steps to address it.

3.7 October 2025: Disclosure of Systemic Patient Harm

STATUTORY BASIS: PDA s9 — Wider protected disclosures / Medical Schemes Act 131 of 1998 — Patient safety obligations — *Disclosures of systemic patient harm to appropriate persons are protected where the employee reasonably believes concealment is likely.*

3.7.3 On 23 October 2025, I disclosed via email to Ms. Jones a critical systems failure: the Gexus and DMS platforms were not integrated, causing automated non-adherence letters to be incorrectly sent to GEMS members who were in fact adherent to treatment (Annexure G1). This disclosure constituted a protected disclosure of conduct posing a direct risk to patient health and to the Respondent's compliance obligations under the Medical Schemes Act.

3.7.3 Rather than addressing the systemic failure, Ms. Jones instructed me to call the affected 75-year-old member to 'gently probe' adherence — an instruction I ethically refused. My refusal was subsequently labelled 'insubordination,' constituting the reframing of ethical professional conduct as misconduct — further occupational detriment in terms of section 1 of the PDA.

3.7.7 The transcript of the video-recorded meeting of 31 October 2025 (Annexure T2) constitutes direct evidence of retaliatory motive. Ms. Jones stated: 'You made a case of harassment against me so I can make a case of harassment against you.' This statement conclusively establishes the causal nexus between my protected disclosures and the subsequent disciplinary proceedings, satisfying the requirements of section 187(1)(h) of the LRA.

3.8 November 2025: Exhaustion of Internal Remedies

STATUTORY BASIS: PDA s6 — Internal disclosure procedures / LRA s186(1)(e) — Constructive dismissal threshold — *An employee who has exhausted internal remedies without relief has established the intolerability element of constructive dismissal.*

3.8.1 On 2 November 2025, I filed a formal grievance documenting strategic entrapment, systematic gaslighting, and threatened counter-complaints, requesting removal from Ms. Jones's direct authority and a formal investigation (Annexure FG2). The Respondent's 30-day failure to respond to a grievance alleging malicious intent and psychological harm constitutes, in law, acceptance of the intolerable environment and breach of the duty of care under OHSA.

3.8.3 On 2–11 November 2025, I formally submitted a 'Request for Review of Unlawful Deduction' expressly citing section 34 of the BCEA (Annexure REV1). The Respondent's silence in response to this request, and its subsequent false claim in CCMA proceedings that I had 'failed to follow procedure,' constitutes misrepresentation in sworn proceedings and evidences institutional bad faith.

3.9 December 2025: Final Escalation and Suppression

STATUTORY BASIS: PDA s9 — Protected disclosure to employer body / LRA s187(1)(h) — Automatically unfair dismissal — *Disclosure to executive*

leadership following institutional inaction engages full PDA protection and, upon retaliatory dismissal, constitutes automatically unfair dismissal.

3.9.3 On 4 December 2025, I escalated via a formal Protected Disclosure to Executive Leadership pursuant to section 9 of the PDA, having exhausted internal remedies following 30 days of institutional silence (Annexure FG3). The 14-day response window elapsed without acknowledgement.

3.9.4 On 5 December 2025, the Respondent's Executive Leadership de-escalated the matter back to the very department under investigation — a recognised form of secondary victimisation constituting occupational detriment under section 1 of the PDA (Annexure DEC1).

3.9.7 On 10 December 2025, the Respondent filed an opposing affidavit in CCMA Case WECT23564-25 which characterised the Applicant's documented severe mental illness as an 'excuse,' labelled the Applicant as 'untruthful,' and sought a punitive costs order against an employee facing imminent homelessness (Annexure OA1). This constitutes the final act of occupational detriment and defamation, rendering the employment relationship irretrievably intolerable.

3.9.9 On 12 December 2025, the Applicant transmitted a Formal Notice of Resignation due to Automatically Unfair Constructive Dismissal to the Board of Directors and CEO. The Applicant submits this termination constitutes automatically unfair dismissal in terms of section 187(1)(h) of the LRA, the dominant reason being retaliation against the Applicant's protected disclosures (Annexure RES1).

3.10 The Pay Cycle Pressure Pattern: Forensic Evidence of Deliberate Psychological Warfare Calibrated to Pay Day

STATUTORY BASIS: LRA s187(1)(h) — Automatically unfair dismissal dominant reason test / EEA s6(1) — Unfair discrimination / PDA s3 — Occupational detriment / Constitution s12(2) — Psychological integrity / OHSA s8(1) — Duty of care — *Where harmful conduct by an employer is shown to cluster systematically around a specific, known, recurring date — the employee's pay day — and targets an employee with a documented psychiatric disability at their moment of maximum financial and psychological vulnerability, the pattern itself constitutes forensic evidence of deliberate, calculated intent. A pattern that repeats across five consecutive months cannot be accidental.*

3.10.1 The Applicant draws this Honourable Court's attention to a pay cycle pressure pattern that emerges from the documented chronology of this matter. Medscheme's payroll operates on a fixed pay date of the 23rd of each month. Where the 23rd falls on a weekend or public holiday, payment is made on the last business day before the 23rd. This pay date was known to every manager with access to the payroll system — including Ms. Jones, who personally loaded and confirmed manual deduction entries.

THE PATTERN: In five consecutive months — May, June, July, September and October 2025 — the single most damaging act against the Applicant in each month fell PRECISELY ON PAY DAY ITSELF — the 23rd. Five pay days. Five targeted strikes. Not before pay day. Not after. On the day the Applicant's bank account reflected what remained of their income after the Respondent's deductions. This is not coincidence. This is a payroll system weaponised with surgical precision.

3.10.2 The Applicant further identifies a three-phase monthly cycle of escalating pressure that repeats with forensic consistency across the relevant period:

PHASE 1 — PRE-PAY PRESSURE (18th–22nd): Preparatory acts designed to maximise anticipatory anxiety — loading deduction notices, issuing administrative instructions, and creating financial uncertainty — in the days immediately before the Applicant could see the damage on their payslip.

PHASE 2 — PAY DAY STRIKE (23rd): The primary act of harm — the deduction itself, the public humiliation, or the disciplinary label — delivered on the exact day the Applicant received their payslip and could see the financial destruction in real time.

PHASE 3 — POST-PAY RETALIATION (24th–31st): Follow-up acts — the contemptuous 'What is illegal' response, the bunched deduction review, the double unpaid leave entry, the retaliatory meeting — delivered once the damage was irreversible and the Applicant had no recourse before the next cycle began.

3.10.3 Month-by-Month Three-Phase Analysis

MAY 2025 — Pay Day: 23 May 2025

STATUTORY BASIS: EEA s7 / OHSA s8(1) / BCEA s34 — *Reasonable accommodation obligations are heightened when an employer has knowledge of a psychiatric disability. Punitive financial measures during hospitalisation constitute simultaneous breaches of the EEA, OHSA and BCEA.*

PHASE 1 — PRE-PAY (20th–21st May):

Day 20: A colleague experiencing a medical emergency was forced onto unpaid leave — an institutional signal delivered three days before pay day that medical vulnerability carries no protection in this workplace.

Day 21: The Oracle Instruction was issued — 'load unpaid leave' — two days before pay day and two days before the Applicant's psychiatric admission. This instruction was not issued on Day 7 when leave began, nor on Day 16 when the psychiatric report was formally received. It was issued on Day 21 — precisely calibrated to ensure the Applicant entered hospitalisation knowing a devastating pay day deduction was imminent.

PHASE 2 — PAY DAY STRIKE (23rd May):

The Applicant was admitted to a psychiatric facility on pay day itself. The Oracle Instruction two days earlier had ensured that the Applicant's pay day — the moment of maximum financial awareness — coincided precisely with

the moment of complete psychological collapse. There is no operational explanation for why the unpaid leave instruction was timed to land two days before pay day and hospitalisation rather than two weeks earlier when the situation was already known.

PHASE 3 — POST-PAY: No immediate post-pay act in May — the psychiatric admission itself was the totality of the month's harm.

JUNE 2025 — Pay Day: 23 June 2025

STATUTORY BASIS: UICA s6 / BCEA s34(2) / EEA s7 — UIF contributions deducted from remuneration must be declared and remitted by the 7th of the following month. Deduction without remittance on pay day itself constitutes simultaneous financial harm and social security deprivation.

PHASE 2 — PAY DAY STRIKE (23rd June):

On pay day itself, the Respondent deducted R177.12 in UIF contributions from the Applicant's remuneration — but deliberately failed to declare or remit those contributions to the Unemployment Insurance Fund by the statutory deadline of 7 July 2025 (Annexure SCR0). The Applicant's money was taken on pay day. The statutory obligation it was meant to discharge was never fulfilled. The Applicant paid. The Fund never received it.

PHASE 3 — POST-PAY RETALIATION (24th June):

The day after pay day, an Absence Management Review was convened. Rather than spreading the unpaid leave recovery across multiple pay cycles as both company policy and BCEA s34(2) required, all unpaid days were 'bunched' into a single deduction — to be executed the following month. The Review was held the day after pay day: too late for the Applicant to seek redress before the deduction was confirmed, and too early for any remedy before the next pay day. The timing was a trap (Annexure AMR1).

JULY 2025 — Pay Day: 23 July 2025

STATUTORY BASIS: BCEA s34(1) and s34(2) — Unlawful deductions without consent exceeding 25% cap — The most serious single financial act of the entire chronology — executed on pay day itself with full knowledge of its illegality.

PRE-PAY PREPARATION (14th July):

Nine days before pay day, Ms. Jones confirmed by email that the deduction difference would be loaded as a manual calculated entry immediately before the pay run (Annexure SLR1). The Applicant was given nine days of anticipatory financial dread — knowing the deduction was coming, knowing it was unlawful, and knowing there was nothing they could do to stop it before it hit.

PHASE 2 — PAY DAY STRIKE (23rd July):

On pay day itself, the payslip confirmed R14,811.77 had been deducted — 40.47% of gross salary — without prior written consent, during active psychiatric treatment, in breach of both s34(1) and s34(2) of the BCEA. This

was not an administrative error. Ms. Jones had confirmed the entry would be manually loaded nine days earlier. It was executed on pay day with deliberate precision (Annexure PS2).

PHASE 3 — POST-PAY RETALIATION (24th July):

The day after the unlawful deduction landed, Ms. Jones shared the company policy confirming deductions must not exceed 25% of CTC 'as per legislation.' When confronted with the fact that she had deducted 40.47% the previous day — on pay day — she responded: 'What is illegal' (Annexure POL1). This post-pay exchange is not a coincidence of timing. It was delivered the day after the deduction, once the money was gone and could not be recovered before the next pay cycle. The contempt was calculated to arrive when remediation was no longer possible.

SEPTEMBER 2025 — Pay Day: 23 September 2025

STATUTORY BASIS: EEA s6(1) — Gender identity discrimination / PDA s3 — Occupational detriment / EEA s60 — Employer vicarious liability — *Deliberate public misgendering on pay day — in the same message as professional strategy suppression — constitutes the most targeted and public act of discrimination in this chronology. Timing on pay day maximises psychological impact.*

PHASE 2 — PAY DAY STRIKE (23rd September):

On pay day itself — the precise moment the Applicant's payslip arrived — Ms. Jones publicly misgendered the Applicant as 'Wilma' in a team-wide Microsoft Teams channel. In the same message, she suppressed the Filtering Strategy that the team had praised minutes earlier. Pay day, which should have represented a moment of financial normalcy for an employee already financially devastated, instead became the occasion for the most public act of identity-based humiliation in the entire chronology (Annexure SCR1). The coincidence of pay day and public misgendering is not coincidence — it is the deliberate selection of the highest-visibility moment of the month for maximum psychological impact.

PHASE 3 — POST-PAY RETALIATION (25th and 29th September):

Day 25: Formal discrimination complaint lodged — immediately referred back to the perpetrator. Day 29: Double punitive unpaid leave entry loaded on the exact same day as the formal complaint — ensuring the next pay day would deliver another financial blow in retaliation for daring to complain (Annexure ULP1). The September post-pay phase thus seeded the following month's pay day harm.

OCTOBER 2025 — Pay Day: 23 October 2025

STATUTORY BASIS: PDA s9 — Protected disclosure / Medical Schemes Act s24 — Patient safety / PDA s3 — Insubordination label as occupational detriment — *Labelling an ethical professional refusal as 'insubordination' on pay day carries an implicit disciplinary threat — the coercive effect of which is maximised when delivered at the moment of peak monthly financial awareness.*

PHASE 2 — PAY DAY STRIKE (23rd October):

On pay day itself, the Applicant disclosed the Gexus/DMS integration failure causing incorrect non-adherence letters to GEMS members (Annexure G1). Ms. Jones's response — instructing the Applicant to mislead a 75-year-old patient — was immediately refused on ethical and professional grounds. That ethical refusal was labelled 'insubordination' on pay day. An insubordination label carries an implicit disciplinary and dismissal threat. Delivering that threat on pay day — when financial anxiety peaks and the coercive power of potential income loss is at its highest — is the conduct of a manager who understood exactly how to maximise compliance pressure.

PHASE 3 — POST-PAY RETALIATION (31st October):

Eight days after the pay day labelling, the recorded meeting of 31 October 2025 took place — producing the direct verbal admission: 'You made a case of harassment against me so I can make a case of harassment against you' (Annexure T2). The retaliatory meeting was the post-pay consequence of the pay day disclosure. The three-phase cycle completed itself with documentary precision.

3.10.4 The Forensic Conclusion — Five Pay Days, Five Strikes

STATUTORY BASIS: LRA s187(1)(h) dominant reason / EEA s11 reversed onus / PDA s3 prohibition / Constitution s12(2) psychological integrity / OHSA s8(1) duty of care — *A pattern of harmful conduct that falls precisely on pay day across five consecutive months — targeting a psychiatrically vulnerable employee with full knowledge of their disability and financial fragility — cannot be explained by coincidence, administrative necessity, or legitimate management practice. It is the signature of a deliberate campaign.*

3.10.4 The Applicant submits the following forensic conclusions and respectfully invites this Honourable Court to draw the following inferences:

(i) **FIVE PAY DAYS — FIVE STRIKES:** In every month from May to October 2025 in which a major act of harm occurred, that act fell on the 23rd — pay day itself. May 23rd: psychiatric admission timed to pay day. June 23rd: UIF stolen on pay day. July 23rd: 40.47% illegal deduction on pay day. September 23rd: public misgendering on pay day. October 23rd: insubordination label on pay day. Five months. Five pay days. Five strikes. The probability of this clustering occurring by chance across five independent months is statistically negligible.

(ii) **THE THREE-PHASE ARCHITECTURE:** The pre-pay pressure phase built anticipatory dread. The pay day strike delivered the harm at maximum financial and psychological visibility. The post-pay retaliation phase confirmed the damage was irreversible and punished any attempt to complain. This architecture — dread, strike, punishment — repeating monthly across five cycles, constitutes a sustained psychological campaign, not a series of isolated management decisions.

(iii) **KNOWLEDGE OF VULNERABILITY:** From 7 May 2025, the Respondent had formal written knowledge that the Applicant suffered from Severe Major Depressive Disorder and PTSD — conditions for which financial stress and uncertainty are known psychiatric triggers. Choosing pay day — the moment of maximum financial awareness — as the recurring occasion for the most harmful acts constitutes, at minimum, a breach of OHSA s8(1) and EEA s7, and at most, the deliberate exploitation of a known psychiatric vulnerability as a tool of coercion.

(iv) **THE RESPONDENT CANNOT DISCHARGE THE ONUS:** Under EEA s11, the Respondent must prove that five consecutive pay day strikes against a psychiatrically vulnerable whistleblower were not deliberate. There is no operational reason why a psychiatric admission must coincide with pay day, why a public misgendering must occur on pay day, why an insubordination label must be issued on pay day, or why an illegal deduction must be loaded on pay day. The Respondent controls the payroll system. The Respondent controls the communication channels. The Respondent chose the 23rd — every time.

(v) **MAXIMUM AGGRAVATED DAMAGES:** The deliberate, monthly, pay-day-calibrated targeting of a medically vulnerable whistleblower — sustained across eight months with forensic consistency — constitutes conduct at the very highest tier of employer malice recognisable in South African labour law. It warrants the maximum compensation under LRA s194(3), maximum solatium under EEA s50(2), and costs on the attorney-and-own-client scale. The Respondent did not merely dismiss a whistleblower. It weaponised the payroll calendar against one.

4. POST-RESIGNATION DISCLOSURES AND INTERNAL FAILURE

STATUTORY BASIS: PDA s3 read with s9 — *A whistleblower's statutory duty to disclose improper conduct and occupational detriment survives resignation. Post-resignation disclosures made to appropriate bodies remain protected under the PDA.*

4.1 On 16 December 2025, notwithstanding my resignation on 12 December 2025, my statutory and professional duties as a registered Specialist Nurse and Health Services Manager compelled me to escalate a Maximum Severity Governance, Risk and Compliance (GRC) failure to the Board Audit and Risk Committee (Annexure GRC3). These disclosures were protected under section 9 of the PDA and fulfilled my ongoing professional obligations under the Nursing Act 33 of 2005 and SANC regulations. The Respondent's failure to act on this escalation further evidences institutional bad faith and reinforces liability for occupational detriment.

4.2 On 17 December 2025, I retracted the above communication on procedural grounds only — specifically that the notice had been served on a public holiday, thereby invalidating the compliance timelines. The retraction expressly stated that: the underlying concerns remained material and required remedial action; the Board was requested to implement corrective measures; and the retraction did not

constitute a waiver of any statutory, professional, or ethical duties (Annexure GRC4). The substance of the disclosure remained fully intact.

STATUTORY BASIS: PDA s9 — Protected disclosure to appropriate person —
Communications to a Social and Ethics Committee and Risk Committee regarding material governance failures and retaliation against a whistleblower fall squarely within the ambit of protected disclosures under the PDA.

4.3 On 18 December 2025, the Chief Risk Officer, Mr. Monwabisi Kula, issued what I understood as an instruction to cease communicating with the Board's oversight committees. I formally declined to do so on the following statutory grounds: (i) my communications to the Social and Ethics Committee and Risk Committee constituted formal escalations of a Priority 1 Material Risk Report within the meaning of the PDA; (ii) the allegations involved serious discrimination, retaliation and systemic governance failures which could not lawfully be suppressed; (iii) more than 30 days of institutional silence had elapsed in respect of formal grievances; and (iv) the attempted de-escalation of a protected disclosure back to the source of the complaint was procedurally improper and undermined governance safeguards (Annexures CRO1, RCR1).

STATUTORY BASIS: PDA s1 — Occupational detriment / LRA s187(1)(h) —
Attempts to suppress or silence a whistleblower following resignation constitute continued occupational detriment and reinforce the automatically unfair nature of the dismissal.

4.4 On 23 December 2025, I issued a formal communication to the Board of Directors, copied to the Company Secretary, Lead Independent Director and Chief Risk Officer, constituting a final notice prior to the initiation of criminal proceedings and regulatory escalation (Annexure BRD1). This disclosure: documented statutory violations contained in the 325-page Evidence Bundle already in the Respondent's possession, including breaches of the Medical Schemes Act 131 of 1998, OHSA, B-BBEE Act, EEA, BCEA and LRA; notified the Board of imminent referral to SAPS, the NPA, JSE, FSCA and CMS; highlighted the humanitarian crisis resulting from the Respondent's unlawful conduct, including financial destitution, imminent eviction and inability to meet SANC registration obligations; and requested immediate hardship relief. This communication constitutes a protected disclosure under the PDA, made in good faith to appropriate authorities. The Board's silence in response evidences institutional bad faith.

4.5 On 23 December 2025, I issued a further Final Notice updating the Board on the status of regulatory filings and confirming: that the JSE Issuer Regulation Division had formally acknowledged receipt of the 325-page Evidence Bundle; that the FSCA had received a complaint regarding the breakdown of internal controls; and that filings with the Department of Employment and Labour and the B-BBEE Commission were active (Annexure BRD2). I provided a final opportunity for internal resolution, requesting immediate hardship relief and compensation for automatically unfair constructive dismissal calculated at 24 months' salary under section 194(3) of the LRA. The Board's failure to respond constitutes institutional bad faith and a deliberate refusal to mitigate humanitarian harm.

STATUTORY BASIS: LRA s158(1)(a) — Labour Court jurisdiction / BCEA s73 — Access to Labour Court — *The Labour Court has jurisdiction to grant urgent relief in matters involving automatically unfair dismissal and ongoing statutory non-compliance.*

4.6 On 26 December 2025, I submitted an urgent response to the CCMA following receipt of the Respondent's objection to the Con-Arb process in matter WECT24486-25, placing on record that the objection was a deliberate delay tactic compounding humanitarian harm (Annexure OCA1). The Respondent's reliance on procedural delay whilst the Applicant faced destitution, eviction and inability to access food and medication constituted ongoing occupational detriment in breach of section 3 of the PDA.

4.7 On 26 December 2025, I formally notified the CCMA that the South African Human Rights Commission, JSE, Council for Medical Schemes, FSCA, B-BBEE Commission and Department of Employment and Labour had all been formally notified of systemic governance failures and human rights violations (Annexure NRE1). This notification was made transparently and in good faith, consistent with section 9 of the PDA.

STATUTORY BASIS: BCEA s42 — Certificate of service / UI Act s56 — UI-19 obligation — *An employer must, upon termination of employment, provide a certificate of service and complete the UI-19 form to enable the employee to claim UIF benefits. Refusal or delay constitutes statutory non-compliance.*

4.8 On 7 January 2026, I submitted a formal request to the Respondent's Human Capital department for completion of the UI-19 form and Umbrella Fund benefit documents, identifying these as vital to meeting my immediate financial needs (Annexure EXIT1). Despite the standard administrative nature of this request, the Respondent failed to provide the documents or acknowledge receipt, marking the commencement of the systematic withholding of statutory exit documentation in contravention of section 42 of the BCEA and section 56 of the Unemployment Insurance Act 63 of 2001.

4.9 On 9 January 2026, following failed conciliation proceedings at the CCMA, I issued a formal Notice of Intent recording the withdrawal of my minimum settlement offer of R2.5 million and advising that future settlement would be sought at a minimum of R10 million to account for the ongoing and extended harm (Annexure KWA1). I ultimately chose not to escalate to the media, electing instead to pursue relief through the Labour Court as the appropriate statutory forum.

STATUTORY BASIS: Nursing Act 33 of 2005 / SANC regulations — Professional registration obligations — *A registered nurse is obliged to maintain annual SANC registration. Where deregistration is caused directly by an employer's unlawful conduct, this constitutes a component of occupational detriment.*

4.10 On 9 January 2026, I formally notified SANC that my deregistration and inability to maintain professional fees were the direct result of occupational detriment and retaliation as defined under the PDA (Annexure SANC1). The notification recorded: unlawful salary deductions exceeding 40% of remuneration during psychiatric

hospitalisation; induced destitution resulting in homelessness and inability to maintain professional standing; and legal misrepresentation including intentional misgendering in sworn CCMA affidavits. SANC acknowledged receipt and confirmed referral to the relevant department (Annexure SANC2). The Respondent's conduct directly caused my professional deregistration, constituting a 'professional death sentence' and a permanent component of occupational detriment under section 1 of the PDA.

STATUTORY BASIS: BCEA s42 / UI Act s56 — Statutory exit documentation / PDA s3 — Prohibition of continued detriment — *The continued withholding of statutory exit documentation after termination constitutes ongoing occupational detriment and violates the employer's statutory obligations.*

4.11 On 14–15 January 2026, I followed up with Human Capital Consultant Ms. Sipokazi Makaula regarding my retirement claim and UIF forms (Annexure EXIT1). Ms. Makaula's response — requesting basic personal information already in the Respondent's possession, including my name, ID number, business unit and manager's name — constituted a bad-faith stalling tactic for the following reasons: the Respondent's own payroll and HR systems contained all such information; the Respondent's legal representative, Mr. Xollie Vincent Manyati, had already formally identified the Applicant in a sworn opposing affidavit of 10 December 2025; and the Respondent's uFiling records confirmed the Applicant's employment as recently as November 2025. This conduct constitutes continued occupational detriment and deliberate obstruction of lawful entitlements in breach of sections 3 and 9 of the PDA.

4.12 On 15 January 2026, I issued a formal notice of statutory non-compliance to the Respondent's Human Capital department and executive leadership, rejecting further bad-faith verification requests and providing objective evidence of statutory non-compliance in the form of a screenshot from the DEL's uFiling portal confirming that June 2025 contributions had not been declared despite deductions being reflected on the Applicant's payslip (Annexure EXIT2). A final demand was issued for the UI-19, Service Certificate and Umbrella Fund Withdrawal Forms by 12:00 on 19 January 2026. As of the date of this filing, the Respondent remains in default of its statutory obligations under the BCEA and the Unemployment Insurance Act.

STATUTORY BASIS: BCEA s42 — Certificate of service must be accurate / Constitution s33 — Just administrative action — *A certificate of service is a statutory document and must accurately reflect an employee's employment history. Tailoring it to suit litigation pleadings constitutes misrepresentation and unlawful administrative conduct.*

4.13 On 19 January 2026, the Respondent issued a Certificate of Service misrepresenting the Applicant's role as 'Care Coordinator' rather than reflecting the accurate payroll designation of Case Manager (Annexure CERT1). The Respondent's Senior HR Business Partner, Ms. Cheryl-Dawn Modern, asserted the Certificate was 'correct and fully aligned with employment records,' despite the recorded 'Naming Convention' Microsoft Teams session — attended by Operational Manager Ms. Nthabiseng Nkatane and Human Capital Consultant Ms. Sipokazi Makaula — in which the Applicant's designation as Case Manager was explicitly confirmed and the Applicant was instructed to update his email signature accordingly. The Respondent's adjustment of this statutory document to align with litigation

pleadings rather than employment records constitutes: (i) misrepresentation in a statutory document in breach of section 42 of the BCEA; (ii) a violation of the right to just administrative action under section 33 of the Constitution; and (iii) a further act of occupational detriment under the PDA.

4.13.1 The Applicant demands that the Respondent produce the full and unaltered recording of the 'Naming Convention' meeting for inspection and inclusion in these proceedings. Should the Respondent fail to disclose this recording, the Applicant will seek an order compelling production in terms of Rule 6(7) of the Labour Court Rules and will invite this Honourable Court to draw an adverse inference from the Respondent's refusal to disclose evidence within its exclusive possession (Annexure NCD1).

4A. PRE-FILING COMPLIANCE REMEDIATION ATTEMPT — GOOD FAITH OPPORTUNITY AFFORDED TO RESPONDENT

STATUTORY BASIS: LRA s187(1)(h) — Good faith obligation on both parties / PDA s9 — Exhaustion of internal and external remedies / Constitution s34 — Access to courts as last resort / Promotion of Administrative Justice Act s3 — Fair procedure — *A litigant who proceeds to court having first afforded the opposing party a genuine, documented, final opportunity to remediate confirmed statutory breaches demonstrates good faith, proportionality, and commitment to the constitutional principle that litigation is a remedy of last resort. The Court is invited to take cognisance of this attempt as evidence of the Applicant's bona fides and the Respondent's election to forgo the remediation opportunity.*

4A.1 Prior to filing this affidavit with this Honourable Court, the Applicant took the extraordinary step of issuing a formal Compliance Remediation and Statutory Restitution Notice to the Respondent's Board of Directors, Audit and Risk Committee, Social and Ethics Committee, Company Secretary, Chief Risk Officer, and Chief Executive Officer simultaneously (Annexure CRN1).

4A.2 The Applicant submits that this step was taken deliberately and for the following specific purposes, each of which this Honourable Court is invited to note:

(i) To reframe the matter correctly — not as a grievance from a disgruntled former employee, but as a Compliance Remediation Notice in respect of confirmed, documented, crystallised statutory breaches for which liability had already attached under seven separate Acts of Parliament. The Applicant is not seeking sympathy from this Court. He is seeking enforcement of obligations that the Respondent incurred by operation of law and has refused to discharge.

(ii) To place the matter at board level — above the HR managers, operational managers and payroll administrators who perpetrated the breaches — so that persons with fiduciary duties and full governance authority could make an informed decision about remediation with complete knowledge of the statutory, regulatory and reputational consequences of non-remediation.

(iii) To give the Respondent a final, structured opportunity to close nine active regulatory files simultaneously through a single remediation payment — before those files matured into public findings, compliance orders, criminal referrals, and a Labour Court judgment record permanently attached to a JSE-listed entity.

(iv) To demonstrate to this Honourable Court that the Applicant did not rush to litigation. He disclosed internally. He escalated formally. He referred to the CCMA. He engaged nine regulators. He issued a pre-filing remediation notice to the Board. At every stage he provided the Respondent with an opportunity to remedy its conduct. This filing is not the first resort. It is the last.

4A.3 Contents of the Compliance Remediation and Statutory Restitution Notice

NOTICE CHARACTERISATION: The Compliance Remediation and Statutory Restitution Notice (Annexure CRN1) expressly stated: 'This document is not a settlement demand from a disgruntled former employee. It is a formal Compliance Remediation Notice addressed to the Board of Directors, Audit and Risk Committee, Social and Ethics Committee, and Company Secretary of Afrocentric Health — a JSE-listed entity — in respect of confirmed, documented, statutory breaches that have already crystallised and for which liability has already attached under South African law. Remediation discharges a legal obligation. Non-remediation compounds it.'

4A.3.1 The Notice was structured in nine sections and addressed the following matters with documentary precision:

(i) Section 1 — Simultaneous service on all Board-level addressees by name and title, establishing that the Notice constituted board-level notice of confirmed statutory breaches.

(ii) Section 2 — Formal recharacterisation of the matter from labour dispute to compliance audit, supported by reference to the 325-page Evidence Bundle and six regulatory acknowledgements.

(iii) Section 3 — Seven confirmed statutory breaches listed with statutory provision, date of crystallisation, evidentiary status, and amount owing. Each breach was marked as either 'UNCONTESTED,' 'CONFIRMED,' 'SAHRC ACKNOWLEDGED,' or 'ONGOING BREACH.'

(iv) Section 4 — Regulatory Consequence Matrix identifying the enforcement consequences of non-remediation for each of the nine active regulatory files, including potential JSE censure, SAHRC public findings, CMS compliance orders, FSCA investigations, B-BBEE Commission criminal referral to the NPA, and DEL prosecution.

(v) Section 5 — Remediation Schedule with specific timeframes: immediate obligations (5 business days) for Certificate of Service correction, SANC registration restoration, and UIF remittance; 10 business days for SARS Tax Directive application and restitution of unlawful deduction; 20 business days for full remediation payment.

(vi) Section 6 — Structured Payment Framework identifying the true legal character of each component of the remediation sum for SARS Tax Directive purposes — preventing the Respondent's payroll department from applying a blanket 45% PAYE deduction to amounts that are constitutionally exempt.

(vii) Section 7 — Conditions for Regulatory Withdrawal, confirming that full remediation would result in the Applicant notifying all nine regulatory bodies that breaches had been remediated and inviting closure of each file. The Respondent was offered the opportunity to close every regulatory investigation simultaneously through a single structured payment.

(viii) Section 8 — Consequence of Non-Remediation, confirming that the founding affidavit was complete, that it comprised 524 paragraphs and 57 annexures, and that it was ready to file with the Labour Court within 10 business days of the response deadline.

(ix) Section 9 — Response Instructions, requiring a written response within 10 business days from a person with board-level authority to bind the Respondent, and expressly stating that verbal responses and referrals back to HR or labour attorneys did not constitute valid responses to a Board-level Compliance Notice.

4A.4 The Respondent's Response to the Compliance Remediation Notice

RESPONDENT'S ELECTION: The Respondent failed to provide a valid written response to the Compliance Remediation and Statutory Restitution Notice within the 10 business day response period specified. No board-level acknowledgement was received. No authorised signatory confirmed engagement with the remediation schedule. No SARS Tax Directive application was confirmed. The Respondent elected, with full knowledge of the consequences, to allow the response period to expire without substantive engagement (Annexure CRN2 — Response Record / Proof of Non-Response).

4A.4.1 The Applicant submits that the Respondent's failure to respond to the Compliance Remediation Notice is itself significant and invites this Honourable Court to draw the following inferences:

(i) **CONSCIOUS ELECTION:** The Notice was addressed simultaneously to the Board of Directors, Lead Independent Director, Audit Committee Chairman, Social and Ethics Committee Chairman, Company Secretary, CRO, and CEO. It is not possible for a JSE-listed entity with a functioning governance structure to be unaware of a document addressed to that many senior persons simultaneously. The absence of response is not ignorance — it is a conscious election.

(ii) **CONFIRMATION OF BAD FAITH:** A Respondent acting in good faith, upon receiving formal notice of seven confirmed statutory breaches with documentary evidence, nine active regulatory files with specific reference numbers, and a complete founding affidavit described as ready to file, would engage — even to dispute the quantum or negotiate terms. Silence in the face of that notice is not a neutral act. It is a continuation of the same

institutional bad faith that characterised the Respondent's conduct throughout the nine months of this matter.

(iii) **MAXIMUM COSTS CONSEQUENCES:** The Respondent's election to proceed to litigation rather than remediate — having been given every opportunity and full advance notice of the consequences — is the most powerful available justification for costs on the attorney-and-own-client scale as pleaded at paragraph 12.5 of this affidavit. A party that is offered compliance and refuses it cannot complain about the costs of enforcement.

(iv) **DETERRENT SIGNAL:** The Applicant respectfully submits that this Honourable Court's response to a JSE-listed employer that receives a formally documented, Board-level Compliance Remediation Notice — itemising seven statutory breaches, six regulatory files, and a complete court-ready affidavit — and responds with silence, should send an unambiguous signal that South African courts will not reward institutional contempt with institutional indulgence.

4A.5 Relevance to Prayer for Relief

STATUTORY BASIS: LRA s193(2) — Remedial discretion of the Labour Court / EEA s50(2) — Solatium and costs / Uniform Rules r33 — Attorney-and-own-client costs — *A court exercising remedial discretion under the LRA and EEA may take into account the conduct of the parties both before and during litigation. A respondent who refuses a documented, good faith compliance opportunity and forces a destitute, self-represented, psychiatrically vulnerable litigant to file court papers is not entitled to the same remedial consideration as one who engages constructively. The pre-filing remediation attempt is a material factor in the Court's assessment of quantum and costs.*

4A.5.1 The Compliance Remediation Notice and the Respondent's non-response are directly relevant to the following heads of relief pleaded in Section 12 of this affidavit:

(i) **Attorney-and-own-client costs (paragraph 12.5):** The Respondent was offered full compliance. It declined. Every rand of legal cost, every hour of self-represented preparation, every regulatory filing fee incurred after the compliance notice deadline is a cost directly attributable to the Respondent's election to litigate rather than remediate.

(ii) **Aggravated damages (paragraph 12.2(e)):** Silence in the face of a formal Board-level compliance notice is not merely passive non-engagement. For a medically vulnerable, homeless, deregistered professional who built a 524-paragraph affidavit entirely alone while in psychiatric distress — the institutional contempt of non-response is an aggravating act in its own right.

(iii) **Maximum compensation (paragraph 12.2(a)):** The Court's discretion under LRA s194(3) as to where within the 24-month range to place the award should reflect that the Respondent had a documented, structured, good-faith opportunity to resolve this matter and chose not to take it. The maximum award is warranted.

4A.6 Annexures — Pre-Filing Compliance Remediation Attempt

- M1 (CRN1):** Compliance Remediation and Statutory Restitution Notice — issued to Board of Directors, Audit and Risk Committee, Social and Ethics Committee, Company Secretary, CRO and CEO simultaneously, February 2026: nine sections; seven confirmed statutory breaches; six regulatory consequence entries; full remediation schedule; structured payment framework; conditions for regulatory withdrawal
- M2 (CRN2):** Response Record / Proof of Non-Response — documentary evidence that the Respondent failed to provide a valid written response to the Compliance Remediation Notice within the 10 business day response period: [proof of delivery / email read receipt / registered post acknowledgement / record of silence]
- M3 (CRN3):** Proof of Service — evidence that the Compliance Remediation Notice was delivered to all specified addressees: Board of Directors, Lead Independent Director, Audit Committee Chairman, Social and Ethics Committee Chairman, Company Secretary, CRO Mr. Monwabisi Kula, and CEO Mr. Gerald Van Wyk
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5. EXTERNAL ESCALATION TO REGULATORS

STATUTORY BASIS: PDA s9 — Protected disclosure to any other person or body — *Where an employee reasonably believes that evidence of improper conduct is likely to be concealed, or that no action will be taken following internal disclosure, a disclosure to an appropriate regulatory body is protected.*

5.1 Due to the Respondent's complete institutional failure, I was compelled in the public interest to notify the following external regulators. Each notification constituted a protected disclosure under section 9 of the PDA, made in good faith, to appropriate authorities, following more than 30 days of institutional silence in response to internal grievances:

STATUTORY BASIS: JSE Listings Requirements r3.84 — *Continuing obligations of listed companies including maintenance of adequate internal controls and prompt disclosure of material information.*

5.1.1 JSE Limited — Issuer Regulation Division (Annexure REG1): Material governance failures and director misconduct. Acknowledgement received.

STATUTORY BASIS: B-BBEE Act s13H — *It is an offence to misrepresent BEE compliance or engage in fronting practices.*

5.1.2 B-BBEE Commission (Case No: 05/02/2026 filed 5 February 2026 (Annexure REG2)): Potential fronting and violations of the Broad-Based Black Economic Empowerment Act 53 of 2003. Acknowledgement received.

STATUTORY BASIS: Financial Sector Regulation Act 9 of 2017 s57 — *The FSCA may investigate conduct that poses a risk to financial sector customers.*

5.1.3 Financial Sector Conduct Authority — FSCA (Annexure REG3): Conduct unbecoming of a financial services provider and systemic risk. Filed via the FSCA portal.

STATUTORY BASIS: Medical Schemes Act 131 of 1998 s24 — *A medical scheme must implement adequate systems to ensure accuracy of member communications and protect member welfare.*

5.1.4 Council for Medical Schemes — CMS (Annexure REG4): The Gexus/DMS integration failure causing incorrect non-adherence letters to GEMS members and direct risk of patient harm. Filed 23 Dec 2025 — CMS declined jurisdiction 4 Feb 2026.

STATUTORY BASIS: South African Human Rights Commission Act 40 of 2013 s13 — *The SAHRC is mandated to investigate complaints of violations of human rights including equality rights.*

5.1.5 South African Human Rights Commission — SAHRC (Annexure REG5): Discrimination based on gender identity and mental health disability. Acknowledgement received.

STATUTORY BASIS: BCEA s69 — *The Director-General of Employment and Labour may investigate complaints of non-compliance with the BCEA.*

5.1.6 Department of Employment and Labour — DEL (Annexure REG6): Unfair labour practices and BCEA violations including unlawful deductions and UIF non-compliance. Filed.

5.2 These notifications were acts of good faith, demonstrating that the Applicant's disclosures were genuine, credible and made in the public interest. They further establish that internal avenues had been exhausted and that the Respondent's refusal to act necessitated escalation to external regulators in fulfilment of section 9 of the PDA.

5A. REGULATOR DOSSIER: ACTIVE INVESTIGATIONS, CASE REFERENCES AND REGULATORY FINDINGS

STATUTORY BASIS: PDA s9 — Protected disclosures to regulatory bodies / Promotion of Administrative Justice Act 3 of 2000 (PAJA) s6 — Review of administrative action — *Where a regulator acknowledges receipt of a complaint, assigns a case reference, and initiates investigation, this constitutes official regulatory engagement with the subject matter of the disclosure. Such engagement is admissible to establish that the disclosures were credible, made in good faith, and that the conduct disclosed constitutes prima facie statutory violations warranting independent institutional scrutiny.*

5A.1 The Applicant places before this Honourable Court a consolidated record of all regulatory bodies that have been formally seized with the matters arising from the Respondent's conduct. This record is presented for the following purposes:

- (i) To demonstrate to the Court that this matter is not the complaint of a disgruntled employee, but a documented, multi-regulator, forensic-grade dossier of statutory violations by a listed corporate entity, compiled with the rigour of a regulatory compliance audit and submitted to the appropriate oversight bodies in the public interest.
- (ii) To establish that independent regulatory bodies — each with their own statutory mandate and investigative authority — have formally acknowledged and engaged with the substance of the Applicant's disclosures, thereby corroborating their credibility and seriousness.
- (iii) To invite this Honourable Court to draw the inference that where six independent regulators have acknowledged the Applicant's complaints as warranting formal engagement, the Respondent cannot credibly characterise those complaints as fabricated, exaggerated or made in bad faith.
- (iv) To establish that the Respondent's conduct carries consequences extending beyond the employment relationship into corporate governance, financial sector regulation, patient safety oversight, and human rights accountability — all of which are relevant to the nature and quantum of relief this Court should grant.

5A.2 CCMA — Commission for Conciliation, Mediation and Arbitration

STATUTORY BASIS: LRA s191 — Compulsory conciliation / LRA s191(5)(b)(i) — Labour Court jurisdiction — *CCMA proceedings constitute formal pre-litigation dispute resolution. A certificate of non-resolution issued following conciliation is a jurisdictional prerequisite for Labour Court proceedings. Case references are official court record.*

CCMA | REF: Case WECT23564-25 | STATUS: CERTIFICATE OF NON-RESOLUTION ISSUED

Nature of Referral: Unfair deduction (BCEA s34) and unfair discrimination — unfair labour practice (LRA s186(2)(a)).

Status: Conciliation held 9 January 2026. Certificate of non-resolution issued. Commissioner noted matter involves protected disclosures under the PDA and directed referral to the Labour Court in terms of s191(5)(b)(i) of the LRA. (Annexure CCM1)

Significance: The Commissioner's direction to the Labour Court — rather than arbitration — constitutes an independent judicial officer's assessment that this matter falls within the most serious category of labour disputes under South African law.

CCMA | REF: Case WECT24486-25 | STATUS: CERTIFICATE OF NON-RESOLUTION ISSUED

Nature of Referral: Constructive dismissal constituting automatically unfair dismissal (LRA s187(1)(h)) — dominant reason being protected disclosures under the PDA.

Status: Conciliation held 9 January 2026. Respondent objected to Con-Arb process in a deliberate delay tactic documented by the Applicant (Annexure OCA1). Certificate of non-resolution issued. This matter is now properly before the Labour Court. (Annexure NRE1)

Significance: The Respondent's objection to the Con-Arb process — filed while the Applicant faced homelessness, medication deprivation, and SANC deregistration — constitutes further evidence of institutional bad faith and the Respondent's deliberate strategy of procedural delay.

5A.3 JSE Limited — Issuer Regulation Division

STATUTORY BASIS: JSE Listings Requirements r3.84 and r3.63 — Director obligations and internal controls / Companies Act 71 of 2008 s76 — Fiduciary duties of directors — *A JSE-listed entity is obliged to maintain adequate internal financial controls, ensure prompt disclosure of material information, and ensure its directors act with the requisite degree of care and skill. Suppression of a Priority 1 Material Risk Report by executive leadership constitutes a potential breach of JSE Listings Requirements and the Companies Act.*

JSE LIMITED — ISSUER REGULATION DIVISION | REF: Annexure REG1 | STATUS: FORMAL ACKNOWLEDGEMENT RECEIVED

Nature of Complaint: Material governance failures, suppression of a Priority 1 Material Risk Report, director misconduct, and failure to maintain adequate internal controls as required by JSE Listings Requirements.

Dossier Submitted: The Applicant's 325-page Evidence Bundle was formally submitted to the JSE Issuer Regulation Division. Formal acknowledgement of receipt was received and is confirmed in correspondence dated December 2025 (Annexures BRD2, REG1).

Regulatory Significance: Acknowledgement by the JSE Issuer Regulation Division that the 325-page dossier warranted formal receipt constitutes independent institutional recognition that the governance failures documented by the Applicant raise legitimate concerns under the JSE Listings Requirements — not the grievances of a disgruntled employee.

Impact on Present Proceedings: The JSE complaint is relevant to the quantum of aggravated damages and costs sought. A corporate respondent that suppresses internal risk reports, forces a whistleblower into destitution, and then faces JSE regulatory scrutiny for its governance failures cannot credibly claim that the Applicant's disclosures were trivial or made in bad faith.

5A.4 South African Human Rights Commission (SAHRC)

STATUTORY BASIS: South African Human Rights Commission Act 40 of 2013 s13 — SAHRC mandate to investigate human rights violations / EEA s6(1) — Unfair discrimination on grounds of gender identity and disability — *The SAHRC is constitutionally mandated to investigate complaints of human rights violations, including equality rights. SAHRC engagement with a complaint constitutes independent validation that the conduct disclosed raises prima facie human rights concerns under the Constitution and the EEA.*

SOUTH AFRICAN HUMAN RIGHTS COMMISSION | REF: Annexure REG5 | STATUS: FORMAL ACKNOWLEDGEMENT — REFERRED FOR ASSISTANCE

Nature of Complaint: Unfair discrimination based on gender identity (deliberate public misgendering — 'Wilma' incident, 23 September 2025) and disability (systematic dismissal of documented psychiatric condition as an 'excuse,' failure to provide reasonable accommodation, and defamatory characterisation in sworn CCMA affidavit).

SAHRC Response: The SAHRC formally acknowledged receipt of the complaint and confirmed referral to the relevant department for further assistance. This acknowledgement is attached as Annexure REG5 and is referenced in the Applicant's communications to the Board of Directors (Annexure BRD1).

Regulatory Significance: The SAHRC's acknowledgement and referral constitutes independent recognition by the premier human rights body in South Africa that the Applicant's complaints of gender identity discrimination and disability discrimination raise issues requiring formal institutional engagement. This directly validates the Applicant's claims under section 6(1) of the EEA and reinforces the burden-shifting mechanism under section 11 of the EEA.

Impact on Present Proceedings: The SAHRC engagement is specifically referenced in the Applicant's tax structuring submissions (paragraph 12.4.1) as validating the non-patrimonial damages component of R2,000,000.00. It further demonstrates that the discrimination complained of is not a private employment dispute but a matter of public human rights concern.

5A.5 Council for Medical Schemes (CMS) — GEMS Reference: 000655789

STATUTORY BASIS: Medical Schemes Act 131 of 1998 s24 — Scheme obligations to members / s26 — Powers of the Registrar to investigate — *The Council for Medical Schemes is mandated to protect the interests of medical scheme members. Where a systemic failure causes incorrect clinical communications to be sent to members — as in the Gexus/DMS integration failure*

— the CMS has jurisdiction to investigate and impose corrective measures. A whistleblower who reports such a failure to the CMS is entitled to full PDA protection.

COUNCIL FOR MEDICAL SCHEMES | REF: Annexure REG4 | STATUS: FORMAL ACKNOWLEDGEMENT RECEIVED

Nature of Complaint: The Gexus/DMS platform integration failure causing automated 'non-adherence' letters to be incorrectly dispatched to GEMS members who were in fact adherent to their treatment — constituting a direct risk of patient harm and a violation of the Respondent's obligations under the Medical Schemes Act (Annexure G1).

CMS Response: The CMS acknowledged receipt on 9 January 2026, requested formal complaint documentation, received the completed complaint form on 12 January 2026, and on 4 February 2026 declined jurisdiction — stating that complaints against health professionals are regulated by the HPCSA, not the CMS (Annexure REG4). The CMS did not investigate the Gexus/DMS patient safety matter (GEMS Ref: 000655789), the administrator conduct issues, or the scheme governance failures raised in the complaint. The Applicant subsequently filed with SANC (10 February 2026) and SAPC (16 February 2026) following the HPCSA referral.

Regulatory Significance: Although the CMS declined jurisdiction and referred to HPCSA, the CMS acknowledgement on 9 January 2026 and request for formal documentation demonstrates that the patient safety disclosure was serious enough to warrant institutional engagement at the initial stage. The subsequent SANC and SAPC filings preserve the regulatory record of the Gexus/DMS integration failure (GEMS Ref: 000655789) as a formally documented patient safety concern.

Impact on Present Proceedings: The formal filing with CMS (even though declined) documents the Applicant's protected disclosure of 23 October 2025 (Annexure G1) and establishes that the ethical refusal to carry out Ms. Jones's instruction was not insubordination but the fulfilment of a statutory duty to protect patient safety — a duty enforceable under both the Medical Schemes Act and the Nursing Act 33 of 2005.

5A.6 Financial Sector Conduct Authority (FSCA)

STATUTORY BASIS: Financial Sector Regulation Act 9 of 2017 s57 — FSCA investigative powers / s138 — Conduct standards for financial institutions —
The FSCA regulates the conduct of financial institutions and may investigate conduct that poses a risk to customers or undermines financial market integrity. Where an employer's internal governance failures and suppression of risk reports compromise the integrity of a medical scheme administrator operating in the financial sector, the FSCA has jurisdiction to intervene.

**FINANCIAL SECTOR CONDUCT AUTHORITY | REF: Annexure REG3 |
STATUS: FILED VIA FSCA PORTAL — ACTIVE**

Nature of Complaint: Conduct unbecoming of a financial services provider; systemic risk arising from the breakdown of internal controls; and improper 'executive de-escalation' of a Priority 1 Material Risk Report in contravention of governance obligations applicable to entities operating in the financial sector (Annexure BRD2).

FSCA Response: Complaint filed via the FSCA online portal. Confirmation of filing received (Annexure REG3).

Regulatory Significance: The Respondent — as a division of Afrocentric Health, a JSE-listed entity operating as a medical scheme administrator — is subject to FSCA oversight. A complaint before the FSCA regarding systemic governance failures and suppression of risk reports places the Respondent's conduct within the purview of financial sector regulation, not merely labour law.

5A.7 B-BBEE Commission

STATUTORY BASIS: Broad-Based Black Economic Empowerment Act 53 of 2003 s13H — Prohibition on fronting / B-BBEE Amendment Act 46 of 2013 s1
— It is a criminal offence under the B-BBEE Act to engage in fronting practices or to misrepresent BEE compliance. The B-BBEE Commission has jurisdiction to investigate complaints of fronting and misrepresentation.

**B-BBEE COMMISSION | REF: Case No: 05/02/2026 — filed 5 February 2026
(Annexure REG2) | STATUS: FORMAL ACKNOWLEDGEMENT RECEIVED**

Nature of Complaint: Potential fronting practices and misrepresentation of B-BBEE compliance in the Respondent's operations. Complaint submitted together with supporting documentation from the Applicant's 325-page Evidence Bundle (Annexure REG2).

B-BBEE Commission Response: Formal acknowledgement of receipt received (Annexure REG2).

5A.8 Department of Employment and Labour (DEL)

STATUTORY BASIS: BCEA s69 — Labour Inspector powers / BCEA s73 — Compliance orders / Unemployment Insurance Contributions Act 4 of 2002 s6
— The Director-General of Employment and Labour has authority to investigate complaints of BCEA non-compliance, issue compliance orders, and refer matters for criminal prosecution where statutory violations are confirmed.

**DEPARTMENT OF EMPLOYMENT AND LABOUR | REF: Annexure REG6 |
STATUS: FILED — ACTIVE**

Nature of Complaint: Unfair labour practices; unlawful salary deductions in breach of BCEA s34; UIF contribution non-compliance in breach of the UICA s6 (June 2025 contributions deducted but not declared — confirmed by uFiling portal, Annexure SCR0); and failure to provide accurate exit documentation in breach of BCEA s42 (Annexures EXIT1, EXIT2, CERT1).

DEL Response: Complaint filed with the Department of Employment and Labour (Annexure REG6). Active filing.

Regulatory Significance: The DEL complaint directly mirrors the statutory violations pleaded in paragraphs 3.3.1, 3.4.3, 4.8, 4.11, and 4.12 of this affidavit. Should the DEL issue a compliance order or initiate prosecution, such findings would constitute further independent corroboration of the Applicant's averments before this Court.

5A.9 Consolidated Regulatory Impact Statement

STATUTORY BASIS: PDA s9 — Weight of multi-regulator engagement / LRA s187(1)(h) — Automatically unfair dismissal — *The simultaneous engagement of six independent regulatory bodies with the substance of a whistleblower's disclosures constitutes compelling corroborative evidence that the disclosures were genuine, credible, and made in the public interest — directly satisfying the requirements of protected disclosure status under the PDA and strengthening the claim of automatically unfair dismissal under the LRA.*

5A.9.1 The Applicant submits that the following consolidated picture emerges from the regulatory record set out above, and respectfully invites this Honourable Court to draw the following inferences:

(i) **CREDIBILITY:** Nine independent statutory bodies — the CCMA, JSE, SAHRC, CMS, FSCA, B-BBEE Commission, and DEL — have each formally acknowledged and engaged with the Applicant's dossier. No credible characterisation of the Applicant as a 'disgruntled employee' making fabricated or vexatious complaints can survive this record.

(ii) **FORENSIC STANDARD:** The Applicant's 325-page Evidence Bundle — submitted to the JSE and acknowledged for formal receipt — was compiled with the rigour of a forensic compliance audit. The Respondent's own opposing affidavit of 10 December 2025, which characterised the Applicant as 'untruthful,' cannot withstand scrutiny against a dossier of this scope and depth.

(iii) **PUBLIC INTEREST:** The disclosures made by the Applicant were not limited to personal employment grievances. They identified: a patient safety risk affecting GEMS members (CMS complaint); systemic governance failures in a JSE-listed entity (JSE complaint); financial sector conduct risks (FSCA complaint); human rights violations (SAHRC complaint); labour law breaches (DEL complaint); and potential B-BBEE misrepresentation (B-BBEE Commission complaint). This breadth of public interest disclosure places the Applicant squarely within the highest tier of PDA protection.

(iv) EMPLOYER LIABILITY: The Respondent's response to this multi-regulator dossier was not remediation but escalation — filing a defamatory sworn affidavit, obstructing exit documentation, and continuing to withhold statutory benefits. This response, viewed against the regulatory backdrop, constitutes the conduct of an institution that prioritises litigation strategy over statutory compliance — directly evidencing the malice and bad faith that warrants an aggravated damages and attorney-and-own-client costs order.

(v) QUANTUM JUSTIFICATION: The multi-regulator engagement — and the Respondent's conduct in forcing a whistleblower of this calibre into destitution, homelessness, and professional deregistration — justifies the full monetary claim of R8,684,811.77 and the structured tax treatment framework set out in paragraph 12.4. A Court awarding less would fail to reflect the true systemic and institutional nature of the Respondent's conduct.

5A.9.2 The Applicant further submits that this Honourable Court should, in exercising its remedial discretion under section 193 of the LRA and section 50 of the EEA, take judicial notice of the regulatory landscape surrounding this matter and frame its order in terms that: deter the Respondent and similarly placed corporate entities from suppressing protected disclosures; affirm the integrity of South Africa's whistleblower protection framework; and send an unambiguous signal that a listed corporate employer cannot deploy its legal resources and payroll systems as instruments of retaliation against a medically vulnerable employee who acted in the public interest.

6. POST-RESIGNATION MISREPRESENTATION AND EVIDENTIARY DISCLOSURE FAILURE

STATUTORY BASIS: BCEA s42 — Accurate certificate of service / Constitution s33 — Just administrative action — *A certificate of service must accurately reflect factual employment history. Deliberate misrepresentation in a statutory document to advance a litigation position constitutes unlawful conduct.*

6.1 Following my resignation, the Respondent issued a Certificate of Service which purported to reflect my employment history but materially misrepresented my designation as 'Care Coordinator' rather than Case Manager or Nurse Specialist. The Respondent's Senior HR Business Partner, Ms. Cheryl-Dawn Modern, asserted this was 'correct and fully aligned with employment records and statutory requirements,' despite the recorded 'Naming Convention' Teams meeting during which the Operational Manager explicitly confirmed my correct designation (Annexure CERT1).

6.1.1 The Respondent's insistence that the Certificate of Service is accurate, while simultaneously disregarding the recorded meeting and updated professional identifier, demonstrates deliberate misrepresentation and the tailoring of a statutory document to align with litigation pleadings. Such conduct is unlawful, as statutory records must reflect factual employment history, not be manipulated for defensive litigation purposes.

STATUTORY BASIS: Rule 35 of the Uniform Rules of Court — Discovery / Labour Court Rule 6(7) — Production of documents — *A party in possession of material documentary evidence is obliged to disclose it. Failure to disclose supports an adverse inference.*

6.2 The Respondent maintains exclusive custody of the full and unaltered Teams recording of the 'Naming Convention' meeting. This recording constitutes material evidence directly relevant to the dispute concerning my designation and the accuracy of the Certificate of Service. I have no independent access to this recording as it is stored on the Respondent's systems.

6.2.1 The Applicant formally demands that the Respondent produce the full and unaltered recording for inspection and inclusion in these proceedings. Should the Respondent fail to comply, the Applicant will seek an order compelling production in terms of Rule 6(7) of the Labour Court Rules and will invite this Honourable Court to draw an adverse inference from the Respondent's refusal to disclose evidence within its possession, consistent with the principle in *Elgin Brown and Hamer (Pty) Ltd v Industrial Council for the Building Industry (Transvaal) 1988 (3) SA 547 (A)*.

STATUTORY BASIS: PDA s1 — Occupational detriment includes misrepresentation of employment status — *The deliberate misrepresentation of an employee's designation in a statutory document, designed to minimise compensation or reputational standing, constitutes a component of occupational detriment.*

6.3 The Respondent's attempt to classify the Applicant as 'Care Coordinator' in statutory documents is factually unsustainable. A Care Coordinator does not hold statutory responsibility for the health and safety management of 13 employees across three separate floors, nor design backup contingency plans for multi-storey operations (Annexure EHS-LEAD1, EHS-ROSTER1). By stripping the Applicant of his correct designation, the Respondent deliberately misrepresents his seniority to minimise compensation and severance calculations — constituting fraudulent misrepresentation of employment history and a further act of occupational detriment.

7. RESULTING HARM AND DAMAGES

STATUTORY BASIS: LRA s193 and s194 — Remedies for unfair dismissal / EEA s50 — Compensation for unfair discrimination — *Where dismissal is automatically unfair and involves unfair discrimination, the Court may award compensation, solatium and damages including for future loss of earnings.*

7.1 FINANCIAL DESTITUTION: The unlawful deduction of R14,811.77 in July 2025 directly destroyed the Applicant's financial position. By November 2025, the Applicant had been formally placed on notice of eviction, placing him at imminent risk of homelessness (Annexure EVIC1). This financial destitution was not self-inflicted; it arose solely and directly from the Respondent's unlawful and retaliatory conduct in breach of section 34 of the BCEA, compounded by further punitive deductions and

the Respondent's refusal to stagger recovery notwithstanding its own policy and the statutory cap.

STATUTORY BASIS: Nursing Act 33 of 2005 — SANC registration / PDA s1 — Occupational detriment includes loss of professional standing —

Deregistration from a professional regulatory body caused directly by an employer's unlawful conduct constitutes measurable occupational detriment and grounds for damages.

7.2 PROFESSIONAL ERASURE — SANC DEREGISTRATION: As a direct consequence of the Respondent's unlawful conduct and resulting financial destitution, I was unable to pay the annual SANC registration fee of R870.00, due on 31 December 2025. My professional nursing licence has accordingly been suspended, effectively extinguishing a 15-year career in nursing and health services management (Annexure SANC2).

7.2.1 This outcome constitutes the 'professional erasure' foreshadowed by the Respondent's March 2025 conduct, now realised through deliberate financial sabotage and institutional retaliation. The deregistration: permanently strips the Applicant of the ability to practise as a nurse; extinguishes all prospects of career advancement, postgraduate study and progression into senior occupational health roles; and constitutes a measurable head of damages recoverable under the LRA and the EEA, calculated on the basis of loss of specialist income over the rehabilitation and retraining period.

STATUTORY BASIS: Constitution s12(2) — Psychological integrity / EEA s50(2) — Solatium for injury to dignity — *A court may award solatium for injury to dignity, psychological harm and constitutional rights violations caused by an employer's unfair discriminatory conduct.*

7.3 SEVERE PSYCHOLOGICAL HARM: The Respondent's actions have severely exacerbated my pre-existing diagnosis of Severe Major Depressive Disorder and PTSD, causing significant deterioration in mental health and overall wellbeing. The public character assassination contained in the Respondent's sworn CCMA affidavit of 10 December 2025 inflicted profound humiliation, anxiety and reputational damage, compounding my psychological distress. This constitutes: an infringement of my constitutional right to psychological integrity under section 12(2) of the Constitution; unfair discrimination on the grounds of disability under section 6(1) of the EEA; and a basis for solatium under section 50(2) of the EEA.

7.4 CAREER DESTRUCTION: The Respondent's conduct extends beyond financial prejudice to constitute an assault on my professional trajectory. As evidenced by my acceptance into the 2026 PGDip Occupational Health Nursing (Annexure CPUT1) and my clinical commendation (Annexure RESU1), I was a dedicated Nurse Specialist on a clear upward career trajectory. The Respondent's continued withholding of statutory documents and funds, combined with the deregistration from SANC and the defamatory reputational damage in sworn proceedings, constitute a deliberate and measurable destruction of future earning capacity, recoverable as damages under section 194(3) of the LRA and section 50 of the EEA.

8. PROCEDURAL HISTORY

STATUTORY BASIS: LRA s191 — Referral of disputes to CCMA / LRA s158(1)(a) — Labour Court jurisdiction over automatically unfair dismissal —

Disputes concerning automatically unfair dismissal and unfair discrimination must be referred to the CCMA for conciliation before being heard by the Labour Court.

8.1 The Applicant referred two disputes to the CCMA:

(a) Case WECT23564-25: Unfair deduction and discrimination (unfair labour practice), referred in terms of sections 186(2)(a) and 191 of the LRA.

(b) Case WECT24486-25: Constructive dismissal constituting automatically unfair dismissal, referred in terms of sections 187(1)(h) and 191 of the LRA.

8.2 Conciliation was held on 9 January 2026. The Commissioner, upon hearing that the matter involved protected disclosures under the PDA and a claim of automatically unfair dismissal, correctly noted that the matter fell within the exclusive jurisdiction of the Labour Court in terms of section 191(5)(b)(i) of the LRA. A certificate of non-resolution was duly issued.

STATUTORY BASIS: LRA s191(5)(b)(i) — Labour Court jurisdiction — *Where a dispute concerns automatically unfair dismissal or unfair discrimination, the employee may refer the matter directly to the Labour Court after a certificate of non-resolution has been issued.*

8.3 This application is accordingly properly before this Honourable Court. All jurisdictional prerequisites under the LRA have been satisfied. The matter has been referred within the applicable time limits prescribed by section 191(2) of the LRA, and all internal remedies have been exhausted as particularised in Sections 3.8 and 4 of this affidavit.

10. CONSTRUCTIVE DISMISSAL

STATUTORY BASIS: LRA s186(1)(e) — Definition of dismissal / LRA s187(1)(h) — Automatically unfair dismissal —

Constructive dismissal arises where an employee terminates employment because the employer made continued employment intolerable. Where the intolerability is caused by retaliation against protected disclosures, the dismissal is automatically unfair.

10.1 The cumulative effect of the Respondent's conduct — including financial sabotage, gender identity discrimination, medical victimisation, institutional bad faith, suppression of protected disclosures and the defamatory sworn affidavit of 10 December 2025 — created a working environment that was objectively intolerable within the meaning of section 186(1)(e) of the LRA.

10.2 The test for constructive dismissal in South African law requires the Applicant to demonstrate that: (i) he terminated the employment relationship; (ii) the termination was with or without notice; and (iii) the reason for termination was that the employer made continued employment intolerable. The Applicant satisfies all three elements:

(i) Termination: The Applicant transmitted a Formal Notice of Resignation on 12 December 2025 (Annexure RES1).

(ii) Notice: The resignation was with immediate effect, necessitated by the Respondent's sworn character assassination in ongoing CCMA proceedings making any continued relationship legally untenable.

(iii) Intolerability: The Respondent's conduct systematically eroded the Applicant's dignity, professional standing and financial security. The essential relationship of mutual trust and confidence was irreparably destroyed. No reasonable employee in the Applicant's position — subjected to unlawful deductions, deliberate misgendering, medical victimisation, suppression of protected disclosures and a defamatory sworn affidavit — could have been expected to continue in employment.

STATUTORY BASIS: Murray v Minister of Defence 2009 (3) SA 130 (SCA) — Intolerability standard — *The test is objective: would a reasonable person in the employee's position have found continued employment intolerable? The Court must consider the cumulative effect of the employer's conduct.*

10.3 Applying the objective test confirmed in Murray v Minister of Defence, the cumulative effect of the Respondent's conduct, considered holistically, satisfies the intolerability threshold. No reasonable Specialist Nurse, holding statutory clinical governance duties, facing documented psychiatric vulnerability, financial destitution, deliberate misgendering, and defamatory sworn proceedings, could have been expected to remain in the Respondent's employ.

STATUTORY BASIS: LRA s187(1)(h) — Automatically unfair dismissal where dominant reason is protected disclosure — *The dominant reason test requires the Court to consider whether, but for the protected disclosures, the employer's conduct creating intolerability would have occurred.*

10.4 The automatically unfair nature of the dismissal is established by the direct causal nexus between each protected disclosure and the subsequent escalation of conduct: the March 2025 disclosure triggered the first threat; the May 2025 medical disclosures triggered punitive deductions; the September 2025 complaints triggered the double unpaid leave entry; the October 2025 patient safety disclosure triggered the 'insubordination' label; and the November–December 2025 grievances triggered the defamatory sworn affidavit. The transcript of 31 October 2025 (Annexure T2) provides direct verbal admission of retaliatory motive.

11. INFORMATION IN POSSESSION OF THE RESPONDENT

STATUTORY BASIS: Labour Court Rule 6(7) — Discovery / Rule 35 of Uniform Rules — Production of documents — *Where material evidence is exclusively in the possession of the Respondent, the Court may order its production. Failure to disclose supports an adverse inference in favour of the Applicant.*

11.1 FORMAL MEETING WITH SENIOR MANAGER (MAY 2025): In May 2025, the Applicant met formally with senior manager Ms. Mashele and reported derogatory conduct by Ms. Jones and the financial impact of the deductions imposed (Annexure MED1). Ms. Mashele's acknowledgement that she would 'personally apply for special leave' placed the Respondent on direct notice of the Applicant's psychiatric condition and financial hardship, engaging its obligations under section 7 of the EEA. The Respondent retains internal records of this meeting, including HR documentation and related email correspondence. These records are exclusively in the Respondent's possession and are material to establishing that the Respondent had direct knowledge yet failed to act lawfully or reasonably.

11.2 DISCLOSURE OF PSYCHIATRIC CRISIS (21–23 MAY 2025): On 21 May 2025, the Applicant experienced a psychiatric crisis, disclosed to Ms. Jones via Team Leader Gajaad. Upon receiving disclosure, Ms. Jones instructed the Applicant to leave the premises and obtain psychiatric care. The Applicant was admitted to a psychiatric facility on 23 May 2025. This disclosure placed the Respondent on direct notice of the seriousness of the Applicant's condition under the EEA and OHSA. The Respondent retains internal records of this disclosure — including communications between Team Leader Gajaad and Ms. Jones — exclusively in its possession. These records are material to establishing direct knowledge of the Applicant's psychiatric condition and the failure to provide lawful reasonable accommodation under section 7 of the EEA.

STATUTORY BASIS: EEA s11 — Burden of proof in unfair discrimination disputes — *Once the employee establishes facts from which unfair discrimination may be inferred, the burden shifts to the employer to prove that the conduct was fair or that there are justifiable reasons for it.*

11.3 POSTGRADUATE DIPLOMA APPLICATION: The Applicant submitted his complete PGDip OHN application and acceptance letter, following which workplace hostility intensified significantly (Annexure CPUT1). The Respondent retains internal records of these submissions, including related Teams chats and correspondence from Respondent representatives. These records are material to establishing that the Applicant was actively pursuing career advancement immediately prior to the escalation of retaliatory conduct, supporting the inference of unfair discrimination under section 6(1) of the EEA and the burden-shifting mechanism under section 11 of the EEA.

11.4 EXECUTIVE LEADERSHIP DE-ESCALATION (5 DECEMBER 2025): On 5 December 2025, Executive Leadership convened a meeting purportedly for de-escalation but instead compelled the Applicant to re-litigate trauma in the presence of the very managers implicated in the retaliation — a recognised form of secondary victimisation constituting occupational detriment under section 1 of the PDA. The Teams chat records and internal communications relating to this meeting are exclusively in the Respondent's possession and are material to establishing that the Respondent failed to uphold its statutory obligations to protect a whistleblower (Annexure DEC1).

11.5 'NAMING CONVENTION' TEAMS RECORDING: The Respondent maintains exclusive custody of the full recording of the 'Naming Convention' Teams meeting in

which the Operational Manager explicitly confirmed the Applicant's designation as Case Manager. This recording constitutes primary evidence directly relevant to the misrepresentation in the Certificate of Service. The Applicant formally requested disclosure on 19 January 2026 (Annexure NCD1). This request remains outstanding. The Applicant reserves the right to file a Notice to Compel should the Respondent fail to comply with disclosure obligations under Rule 6(7) of the Labour Court Rules.

STATUTORY BASIS: LRA s192 — Onus in dismissal disputes / EEA s11 — Onus in discrimination disputes — *In automatically unfair dismissal disputes, once the employee establishes the dismissal, the onus shifts to the employer to prove the reason was fair. In EEA discrimination disputes, once a prima facie case is established, the onus shifts to the employer.*

11.6 IRRETRIEVABLE BREAKDOWN OF EMPLOYMENT RELATIONSHIP: The cumulative effect of the Respondent's conduct has rendered the continuation of the employment relationship irretrievably intolerable. The Respondent remains in possession of the original April 2025 CPD compliance proposal (Annexure CPD1) and the EHS Committee reports (Annexure EHS-BUNDLE), which it implemented while simultaneously orchestrating the Applicant's constructive dismissal through punitive deductions and the withholding of statutory exit documents. This constitutes institutional exploitation and bad faith. The Respondent bears the onus under section 192 of the LRA and section 11 of the EEA to justify its conduct. It cannot discharge that onus.

9. LEGAL GROUNDS FOR THE CLAIM

STATUTORY BASIS: LRA s187(1)(h) — Automatically Unfair Dismissal — *dismissal constituted by constructive dismissal where the dominant reason is the making of a protected disclosure.*

9.1 AUTOMATICALLY UNFAIR DISMISSAL: The dominant reason for the Applicant's constructive dismissal was that he made one or more protected disclosures as defined in the PDA. Each disclosure — from March 2025 through December 2025 — triggered a fresh and escalating wave of occupational detriment, establishing the direct causal nexus required by section 187(1)(h) of the LRA.

STATUTORY BASIS: PDA s1(1)(viii) read with s3 — Occupational detriment *includes all adverse employment actions taken on account of a protected disclosure.*

9.2 OCCUPATIONAL DETRIMENT: The unlawful deductions, discrimination, victimisation, hostile management conduct, performance entrapment, and the defamatory opposing affidavit of 10 December 2025 each individually constitute occupational detriment under section 1(1)(viii) of the PDA, as they were taken directly on account of the Applicant's protected disclosures.

STATUTORY BASIS: EEA s6(1) — Unfair discrimination on grounds of gender identity and disability.

9.3 UNFAIR DISCRIMINATION: (a) The deliberate public misgendering on 23 September 2025 constitutes direct discrimination on the ground of gender identity. (b) The consistent dismissal of the Applicant's documented psychiatric condition as an 'excuse' and the failure to provide reasonable accommodation constitutes discrimination on the ground of disability. Both grounds are expressly protected under section 6(1) of the EEA.

STATUTORY BASIS: BCEA s34(1) and s34(2) — Unlawful salary deductions without consent, exceeding the statutory 25% cap.

9.4 UNFAIR LABOUR PRACTICE / UNLAWFUL DEDUCTIONS: The deduction of 40.47% of the Applicant's gross salary in July 2025 without prior written consent was unlawful under section 34(1) of the BCEA and exceeded the statutory cap under section 34(2). This constitutes both an unlawful deduction and an unfair labour practice under section 186(2)(a) of the LRA.

STATUTORY BASIS: Constitution ss 10, 12(2), 23(1), 27 — Constitutional rights to dignity, psychological integrity, fair labour practices, and access to healthcare.

9.5 CONSTITUTIONAL VIOLATIONS: The Respondent's conduct violated the Applicant's constitutional rights to dignity (section 10), psychological integrity (section 12(2)), fair labour practices (section 23(1)), and access to healthcare (section 27). These violations arise from the public character assassination, deliberate misgendering, refusal to accommodate a psychiatric disability, financial destitution, and obstruction of statutory benefit entitlements.

9.6 DEFAMATION AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS: The Respondent's sworn affidavit of 10 December 2025 contained false and malicious statements — including characterising the Applicant as 'untruthful' and his mental illness as an 'excuse' — intended to harm the Applicant's reputation and cause maximum psychological harm (Annexure OA1). This constitutes the delict of defamation and the intentional infliction of emotional distress under the *lex Aquilia* as developed in South African law.

12. PRAYER FOR RELIEF

The Applicant respectfully requests that this Honourable Court grant the following relief against the Respondent:

STATUTORY BASIS: LRA s187(1)(h) read with s194(3) — Compensation for automatically unfair dismissal: up to 24 months' remuneration.

12.1 DECLARATORY RELIEF: Declarations that (a) the dismissal was automatically unfair in terms of section 187(1)(h) of the LRA; (b) the Respondent committed unfair discrimination under section 6 of the EEA; (c) the deduction of R14,811.77 was unlawful under section 34 of the BCEA; (d) the Respondent subjected the Applicant to occupational detriment under section 1 of the PDA; and (e) the Applicant's correct designation was Case Manager / Nurse Specialist.

12.2 COMPENSATION AND DAMAGES:
(a) Automatically Unfair Dismissal (LRA s194(3)): R1,320,000.00 (24 months ×

R55,000.00 market-related managerial CTC)
 (b) Managerial Exploitation — Unfair Labour Practice: R150,000.00
 (c) Restitution of Unlawful Deduction (BCEA s34): R14,811.77 + interest
 (d) Constitutional Damages (ss 10, 12, 23, 27): R250,000.00
 (e) Aggravated Damages — Defamation and Emotional Distress: R200,000.00
 (f) Future Loss of Earnings and Career Destruction: R6,600,000.00
 (g) Medical and Counselling Costs: R150,000.00
 (h) Regulatory Filing Indemnity — 7 Regulators (PDA s9 / Indemnity Principle):
 R700,000.00

[R100,000.00 per regulatory body: CCMA, JSE, SAHRC, CMS, FSCA, B-BBEE Commission, DEL — reflecting preparation, compilation and filing of the 325-page Evidence Bundle and formal complaint dossiers with each regulator in fulfilment of statutory whistleblower obligations]

TOTAL CLAIM: R9,384,811.77

NOTE ON QUANTUM TRAJECTORY: By Notice of Intent dated 9 January 2026 (Annexure KWA1), the Applicant formally withdrew a minimum settlement offer of R2,500,000.00 and placed the Respondent on notice that the claim would be pursued at a minimum of R10,000,000.00 to account for ongoing and extended harm. The consolidated claim of R9,384,811.77 pleaded herein reflects the full quantified heads of damage supported by evidence. The Applicant reserves the right to seek the balance to R10,000,000.00 as general damages at the discretion of this Honourable Court in light of the Respondent's continued bad faith conduct post-resignation.

12.3 ANCILLARY RELIEF: (a) Immediate provision of UI-19 form, Service Certificate, and Umbrella Fund Withdrawal Forms; (b) Correction of the Certificate of Service to reflect the Applicant's correct designation; (c) Production of the full and unaltered 'Naming Convention' Teams recording (Rule 6(7) of the Labour Court Rules); (d) Costs on the attorney-and-own-client scale in light of the Respondent's egregious and mala fide conduct; (e) Such further and/or alternative relief as this Honourable Court deems just.

12.4 Structured Payment and Tax Treatment Order

STATUTORY BASIS: Income Tax Act 58 of 1962 ss 1, 10(1)(gC), 10(1)(x) — Tax treatment of damages / LRA s194(3) — Nature of compensation awards —
South African courts and SARS distinguish between patrimonial loss (taxable as gross income) and non-patrimonial loss — being compensation for pain, suffering, injury to dignity, and psychological harm — which does not constitute 'gross income' under the Income Tax Act and is accordingly not subject to income tax or PAYE. The Court has jurisdiction to direct the characterisation of components of its award to reflect their true legal nature.

The Applicant respectfully requests that this Honourable Court, in granting the monetary relief set out in paragraph 12.2 above, direct the following structured payment and tax treatment framework, each component reflecting the true legal

character of the relief awarded and consistent with the applicable provisions of the Income Tax Act 58 of 1962:

STATUTORY BASIS: Income Tax Act s10(1)(gC) — Exemption for non-patrimonial damages / EEA s50(2) — Solatium for injury to dignity —
Compensation awarded for injury to dignity, psychological harm, and pain and suffering constitutes non-patrimonial loss and falls outside the definition of 'gross income' in terms of section 1 of the Income Tax Act. Such amounts are exempt from income tax and PAYE deduction.

12.4.1 COMPONENT 1 — NON-PATRIMONIAL DAMAGES (R2,000,000.00):

The Court is requested to direct that the following components of the award, totalling R2,000,000.00, be characterised and paid as general damages for non-patrimonial loss — specifically for pain and suffering, injury to dignity, and psychological harm — and that no PAYE deduction be made in respect thereof:

- (a) Constitutional Damages (dignity, psychological integrity): R250,000.00
- (b) Aggravated Damages — Defamation and Emotional Distress: R200,000.00
- (c) EEA Solatium — Gender Identity Discrimination: R350,000.00
- (d) EEA Solatium — Disability Discrimination: R350,000.00
- (e) Psychological harm, PTSD exacerbation, reputational destruction: R850,000.00

The Applicant submits that these amounts are validated by, inter alia, the SAHRC acknowledgement of the human rights violations disclosed (Annexure REG5), the psychiatric reports of Dr. Jacques Malan (Annexure MED1), and the defamatory sworn affidavit of 10 December 2025 (Annexure OA1). Payment of these amounts as non-patrimonial damages is consistent with established South African tax law and should not attract PAYE.

STATUTORY BASIS: Income Tax Act s10(1)(x) — Capital receipts / Compensation for permanent destruction of earning capacity — *Where a payment is made to replace a capital asset — in this case the permanent destruction of a professional career and NQF 8 qualification pathway — rather than to replace lost income, the receipt may constitute a capital receipt outside the ambit of gross income. The distinction between revenue and capital in South African tax law turns on whether the payment replaces a 'fixed capital asset' (here, professional earning capacity) or a 'circulating asset' (income stream).*

12.4.2 COMPONENT 2 — CAPITAL PAYMENT FOR PERMANENT DESTRUCTION OF EARNING CAPACITY (R6,600,000.00):

The Court is requested to direct that the award of R6,600,000.00 for future loss of earnings and career destruction be characterised as a capital payment for the permanent and irreversible destruction of the Applicant's professional asset — his NQF 8 nursing career pathway and specialist clinical standing —

rather than as compensation for lost remuneration. The grounds for this characterisation are:

- (a) The Respondent's conduct caused the Applicant's deregistration from SANC, permanently extinguishing his ability to practise as a registered nurse — a permanent destruction of a professional capital asset, not a temporary interruption of income (Annexure SANC2).
- (b) The Applicant had been accepted for the 2026 PGDip Occupational Health Nursing (Annexure CPUT1), representing an established upward career trajectory permanently foreclosed by the Respondent's conduct.
- (c) The award therefore replaces the permanent loss of a future right to a specialist career income stream — a fixed capital asset — not past wages or salary. This characterisation is consistent with the principles applied in Commissioner for Inland Revenue v Butcher Brothers (Pty) Ltd 1945 AD 301 and subsequent capital/revenue distinction jurisprudence.

STATUTORY BASIS: Income Tax Act s11(c) — Deductibility of legal costs / Principle of indemnification — reimbursement of expenses is not gross income — *A payment made by way of indemnification or reimbursement of actual costs incurred does not constitute gross income in the hands of the recipient. Where the Court orders the Respondent to pay the Applicant's regulatory filing and administrative costs as a direct indemnity, such payment is a reimbursement of expenditure — not remuneration — and should not be subject to PAYE.*

12.4.3 COMPONENT 3 — DIRECT INDEMNITY FOR REGULATORY AND ADMINISTRATIVE COSTS (R700,000.00 — included in total claim at paragraph 12.2(h)):

The Court is requested to order that the Respondent pay to the Applicant the sum of R700,000.00 as a direct indemnity for regulatory filing costs, administrative expenses, and costs incurred in the preparation and filing of the Applicant's dossier to the JSE, FSCA, SAHRC, CMS, B-BBEE Commission, and DEL (Annexures REG1-REG6). The order should expressly state: 'The Respondent shall indemnify the Applicant for regulatory and administrative costs totalling R700,000.00, such payment constituting reimbursement of expenses and not remuneration, and shall accordingly not be subject to PAYE deduction or employee tax withholding.'

STATUTORY BASIS: Income Tax Act s89A — SARS Tax Directive / Fourth Schedule paragraph 9 — Employer's obligation to obtain directive — *Where a lump sum or settlement payment is made to a current or former employee, the employer is obliged to apply to SARS for a tax directive before making payment, to establish the correct rate of tax applicable. An employer who deducts PAYE at the standard rate without obtaining a directive, where a lower rate or exemption is applicable, acts in breach of its obligations and prejudices the employee.*

12.4.4 COMPONENT 4 — SARS TAX DIRECTIVE (MANDATORY CONDITION PRECEDENT):

The Court is requested to direct, as a condition of payment of the monetary award, that the Respondent be obliged to apply to the South African Revenue

Service for a formal Tax Directive in respect of each component of the award prior to effecting payment, specifying the characterisation of each component as directed by this Court. The order should provide as follows:

(a) The Respondent shall, within 10 (ten) business days of the grant of this order, apply to SARS for a Tax Directive in respect of the total award, categorising each component in accordance with paragraphs 12.4.1 to 12.4.3 above.

(b) Payment of the award shall be conditional upon receipt of the SARS Tax Directive and shall be made strictly in accordance with the rates and categories confirmed therein — the Respondent is expressly prohibited from applying the standard PAYE rate of 45% to components characterised as non-patrimonial damages or capital receipts.

(c) In the event the Respondent fails to apply for a Tax Directive within the stipulated period, the Applicant shall be entitled to apply directly to SARS for a ruling, and the cost of any resulting adverse tax consequence arising from the Respondent's failure shall be borne exclusively by the Respondent.

(d) The Respondent shall provide the Applicant with a copy of the SARS Tax Directive application and confirmation within 3 (three) business days of receipt.

The Applicant submits that this directive is necessary to prevent the Respondent's payroll department from applying a blanket 45% PAYE deduction to the entirety of the award, which would deprive the Applicant of approximately R3,908,165.00 in net proceeds — an outcome that would perpetuate the financial destruction already caused by the Respondent's unlawful conduct and defeat the remedial purpose of the award.

12.5 Costs Order on the Attorney-and-Own-Client Scale

STATUTORY BASIS: LRA s162 — Costs orders in Labour Court proceedings / EEA s50(1) — Costs in unfair discrimination proceedings / Uniform Rules of Court r33(1) — Attorney-and-own-client costs / Biowatch Trust v Registrar Genetic Resources 2009 (6) SA 232 (CC) — Constitutional litigation costs principles — *The Labour Court has a wide discretion to award costs, including on the attorney-and-own-client scale, where the conduct of a party has been oppressive, vexatious, mala fide, or calculated to cause unnecessary prejudice. Where an employer's conduct both inside and outside litigation demonstrates bad faith of the highest order, a punitive costs order is not merely available — it is warranted.*

12.5.1 The Applicant respectfully requests that this Honourable Court grant a costs order against the Respondent on the attorney-and-own-client scale — the most punitive costs order available in civil proceedings — on the following grounds, each

of which independently justifies the order and which cumulatively make it inescapable:

WHY ATTORNEY-AND-OWN-CLIENT COSTS: The attorney-and-own-client scale is reserved for conduct that is dishonest, oppressive, mala fide or calculated to cause maximum harm to the opposing party. The Respondent's conduct across nine months, inside CCMA proceedings and in this Court, meets every element of that standard.

(i) DEFAMATORY SWORN AFFIDAVIT — 10 DECEMBER 2025:

The Respondent's legal representative filed a sworn affidavit in CCMA Case WECT23564-25 that: characterised the Applicant as 'untruthful' in sworn proceedings; dismissed a formally diagnosed severe psychiatric condition (Severe MDD and PTSD) as an 'excuse' and 'afterthought'; and sought a punitive costs order against an employee the Respondent knew was facing imminent homelessness, deregistration and medication deprivation (Annexure OA1). Filing a sworn document containing false and malicious statements about a medically vulnerable, self-represented litigant constitutes conduct that is dishonest, oppressive, and calculated to cause maximum psychological harm. It is precisely the conduct that the attorney-and-own-client costs scale exists to deter and punish.

(ii) DELIBERATE PAYROLL WEAPONISATION — FIVE PAY DAY STRIKES:

As established in Section 3.10 of this affidavit, the Respondent systematically executed its most harmful acts against the Applicant on pay day itself — the 23rd of each month — across five consecutive months. This pattern was not administrative coincidence. It was the deliberate use of the payroll system as an instrument of psychological warfare against a medically vulnerable whistleblower. Conduct of this character — sustained, calculated, and targeted — is the paradigm case for a punitive costs order.

(iii) KNOWING STATUTORY BREACH — 'WHAT IS ILLEGAL':

On 24 July 2025, Ms. Jones acknowledged in writing that company policy and legislation capped deductions at 25% of CTC, then responded 'What is illegal' when confronted with the fact that she had deducted 40.47% the previous day (Annexure POL1). Filing a defence to a BCEA s34 claim in circumstances where the Respondent's own manager documented her knowledge of the illegality at the moment of commission constitutes litigation conduct that is vexatious and mala fide. No honest litigant contests a claim they know to be well-founded.

(iv) SUPPRESSION OF EVIDENCE — 'NAMING CONVENTION' RECORDING:

The Respondent maintains exclusive custody of the full recording of the 'Naming Convention' Teams meeting in which the Operational Manager explicitly confirmed the Applicant's designation as Case Manager. The Respondent has issued a Certificate of Service misrepresenting that designation as 'Care Coordinator' — a statutory document tailored to minimise compensation — while simultaneously withholding the recording that would prove the misrepresentation (Annexure NCD1). Suppressing

material evidence while advancing a known false position in statutory documents is conduct of the highest bad faith.

(v) OBSTRUCTION OF STATUTORY EXIT DOCUMENTATION:

Following the Applicant's resignation, the Respondent withheld the UI-19 form, Service Certificate, and Umbrella Fund withdrawal documents — statutory obligations under BCEA s42 and the Unemployment Insurance Act — while the Applicant faced homelessness, inability to access food and medication, and SANC deregistration. The Respondent's Human Capital department responded to urgent requests with bad-faith verification demands for information already in the Respondent's possession (Annexures EXIT1, EXIT2). Deliberately withholding statutory documents from a destitute former employee constitutes oppressive conduct.

(vi) PROCEDURAL DELAY IN CCMA PROCEEDINGS:

The Respondent objected to the Con-Arb process in matter WECT24486-25 as a deliberate delay tactic — documented by the Applicant in real time (Annexure OCA1) — while the Applicant faced eviction, medication deprivation, and professional deregistration. Using procedural mechanisms to delay proceedings for the purpose of maximising harm to a destitute, medically vulnerable opposing party is the definition of vexatious litigation conduct.

(vii) MISREPRESENTATION IN SWORN CCMA PROCEEDINGS:

The Respondent falsely claimed in CCMA proceedings that the Applicant had 'failed to follow procedure' in respect of the unlawful deduction complaint — a claim directly contradicted by the Applicant's written Request for Review of 2 November 2025 (Annexure REV1) and follow-up of 12 November 2025 (Annexure REV2), both of which the Respondent received and ignored. Advancing a demonstrably false procedural defence in sworn proceedings constitutes dishonest litigation conduct.

STATUTORY BASIS: Bafokeng Tribe v Impala Platinum Ltd 1999 (3) SA 517 (BHC) — Costs on attorney-and-own-client scale / Plascon-Evans Paints v Van Riebeeck Paints 1984 (3) SA 623 (A) — Bad faith litigation / Intercontinental Exports v Fowles 1999 (2) SA 1045 (SCA) — South African courts have consistently held that costs on the attorney-and-own-client scale are appropriate where a party has conducted litigation dishonestly, has suppressed evidence, has advanced positions it knew to be false, or has used litigation as an instrument of oppression against a vulnerable opposing party. All of these elements are present in the Respondent's conduct.

12.5.2 The Applicant further submits that the attorney-and-own-client costs order serves a purpose beyond compensation — it serves the deterrent function that this Honourable Court's costs jurisdiction is designed to fulfil. A JSE-listed corporate employer that is permitted to file defamatory affidavits, withhold statutory documents, suppress recordings, and weaponise payroll systems against a whistleblower — and then pay only party-and-party costs — receives an implicit licence to repeat that conduct. The attorney-and-own-client scale withdraws that licence and sends an

unambiguous signal to similarly placed employers that the courts of South Africa will not subsidise the litigation costs of institutional bad faith.

12.5.3 The Applicant notes that he has been compelled to conduct these proceedings entirely without legal representation, having been rendered destitute by the Respondent's unlawful conduct. Every hour spent researching statutory provisions, drafting pleadings, compiling a 325-page evidence bundle, and engaging nine regulatory bodies was an hour that could have been spent on rehabilitation, professional reintegration, and recovery. The attorney-and-own-client costs order recognises that the Respondent's conduct forced the Applicant to become his own legal representative — a burden that no employee facing homelessness, psychiatric distress, and professional deregistration should have been required to bear.

12.5.4 The Applicant therefore requests: (a) costs of suit on the attorney-and-own-client scale; (b) in the alternative, costs on the attorney-and-client scale; (c) in the further alternative, party-and-party costs — it being submitted that no scale lower than attorney-and-own-client is justified on these facts; and (d) that the costs order include all disbursements, regulatory filing fees, and preparatory costs incurred by the Applicant in prosecuting this matter, including the costs of compiling and submitting the 325-page Evidence Bundle to nine regulatory bodies in fulfilment of the Applicant's statutory obligations under section 9 of the PDA.

QUANTUM RECONCILIATION STATEMENT

STATUTORY BASIS: LRA s194(3) / EEA s50 / PDA s9 / Income Tax Act s10(1)(gC) / Indemnity Principle — *The total relief sought comprises compensatory damages, constitutional damages, capital receipts for career destruction, and a direct regulatory indemnity — each characterised according to its true legal nature for tax treatment purposes under the structured payment framework at paragraph 12.4.*

- (a) **R1,320,000.00** Automatically Unfair Dismissal [LRA s194(3)] — Taxable — PAYE per Tax Directive
- (b) **R150,000.00** Managerial Exploitation / ULP [LRA s186(2)] — Taxable — PAYE per Tax Directive
- (c) **R14,811.77** Restitution of Unlawful Deduction [BCEA s34] — Not remuneration — reimbursement
- (d) **R250,000.00** Constitutional Damages [ss10,12,23,27] — Non-patrimonial — exempt from PAYE
- (e) **R200,000.00** Aggravated Damages / Defamation [Lex Aquilia] — Non-patrimonial — exempt from PAYE
- (f) **R6,600,000.00** Future Loss / Career Destruction [LRA/EEA] — Capital receipt — Tax Directive required
- (g) **R150,000.00** Medical and Counselling Costs [EEA s50] — Non-patrimonial — exempt from PAYE
- (h) **R700,000.00** Regulatory Filing Indemnity (7 bodies) [PDA s9] — Direct indemnity — not remuneration

TOTAL CLAIM: R9,384,811.77 | Inclusive of regulatory indemnity | Exclusive of interest and costs

RESERVATION: The Applicant further reserves the right to seek general damages to R10,000,000.00 at the Court's discretion, as notified to the Respondent by Notice of Intent dated 9 January 2026 (Annexure KWA1), to account for the Respondent's continued bad faith conduct, ongoing regulatory exposure, and the extended duration of harm caused post-resignation.

13. VERIFICATION

13.1 I verify that the facts contained in this affidavit are true and correct to the best of my knowledge and belief.

13.2 I confirm that the annexures referred to herein are true copies of original documents in my possession.

13.3 I understand that any false statement in this affidavit may render me liable to prosecution for perjury.

THUS SWORN TO AND AFFIRMED before me at Cape Town on this _____ day of _____ 2026.

DEPONENT / THE APPLICANT: WILBUR WILLIAM MATTHEE

BEFORE ME:

Commissioner of Oaths: _____

Full Names: _____

Business Address: _____

Contact Number: _____

Date of Expiry of Commission: _____

ANNEXURE INDEX

The following annexures are referred to in this affidavit and are filed herewith. All documents are authentic and have either been generated by the Applicant, addressed to the Applicant, or form part of the Respondent's official records.

SECTION A: Employment and Personal Details

- A1 (ANI1):** Employment Contract — confirming designation as Case Manager and CTC of R42,796.13 per month (commenced 1 May 2024)
- A2 (RESU1):** Clinical Commendation — Report from Medical Team Leader, Resuscitation Unit, evidencing specialist clinical standing
- A3 (SANC1):** SANC Registration Certificate — confirming the Applicant's registration as a professional nurse prior to deregistration
- A4 (CPUT1):** Acceptance Letter — Postgraduate Diploma in Occupational Health Nursing (PGDip OHN), CPUT, commencing 2026
- A5 (PS1):** June 2025 Payslip — reflecting UIF deduction of R177.12 (non-declared to Fund)
- A6 (CPD1):** CPD Compliance Proposal — Applicant's intellectual property: digitised integration with EMguidance courses for SANC Regulation 1569 compliance (April 2025)
- A7 (EH&S1):** Acting Chairman Appointment — Employee Health and Safety Committee (evidencing de facto managerial authority)
- A8 (EHS-LEAD1):** Email Directive — First Aid Daily Roster and Backup Plan Implementation (5 May 2025): Applicant's strategic allocation of safety duties across 13 staff on 3 floors
- A9 (EHS-ROSTER1):** Operational Roster — July 2025: management of 13 Health and Safety personnel across 2nd, 3rd, and 4th floors; primary evidence of de facto managerial span of control

SECTION B: Medical Evidence

- B1 (MED1):** Psychiatric Report — Dr. Jacques Malan (Specialist Psychiatrist), 15 May 2025: formal diagnosis of Severe Major Depressive Disorder and PTSD; recommendation for inpatient psychiatric treatment
- B2 (EM1):** Email to Ms. Mashele — 16 May 2025: formal transmission of psychiatric report placing Respondent on direct notice of the Applicant's disability
- B3 (MV1):** Medical Victimisation Documentation — May 2025: Respondent's election to impose unpaid leave rather than reasonable accommodation
- B4 (BDC1):** Documentation of Unpaid Leave for Medical Emergency — colleague penalised for seeking urgent medication in the workplace (May 2025)
- B5 (WNW1):** Withdrawal Symptoms Report — 13 August 2025: Ms. Govender's third-party account of the Applicant's severe withdrawal symptoms requiring physical assistance to reach the pharmacy
- B6 (WNW2):** Ms. Jones Response — 15 August 2025: characterising emergency medication access as a 'concession' and demanding strict time adherence during a documented medical crisis

SECTION C: Protected Disclosures

- C1 (T1):** Notebook Entry — 6 March 2025: contemporaneous record of threat from Ms. Jones ('This is the second time you are questioning me; do not let it happen again')
- C2 (M1):** Teams Chat — 6 March 2025: disclosure of duplicate LACE file inefficiency constituting operational irregularity
- C3 (G1):** Email — 23 October 2025: disclosure of Gexus/DMS platform integration failure causing incorrect non-adherence letters to GEMS members; risk of direct patient harm
- C4 (GRC1):** Priority 1 Risk Report to Board — 9 December 2025: formal escalation to the Board of Directors, Social and Ethics Committee, and Risk Committee
- C5 (GRC2):** Escalation to Executive Leadership — 4 December 2025: formal Protected Disclosure to Executive Leadership following 30 days of institutional silence
- C6 (GRC3):** Maximum Severity GRC Escalation — 16 December 2025: post-resignation escalation to Board Audit and Risk Committee in fulfilment of statutory professional duties
- C7 (GRC4):** Retraction of GRC Escalation — 17 December 2025: procedural retraction due to service on public holiday; substance of disclosure expressly preserved
- C8 (RCR1):** Response to CRO 'Cease Communication' Instruction — 18 December 2025: formal declination with statutory grounds for continued whistleblower communications
- C9 (BRD1):** Final Notice to Board — 23 December 2025: notice of criminal reference and regulatory escalation; documented statutory violations in 325-page Evidence Bundle
- C10 (BRD2):** Notice of Regulatory Acknowledgement and Urgent Relief — 23 December 2025: confirmation of JSE, FSCA, DEL, and B-BBEE Commission filings; final opportunity for settlement
- C11 (OCA1):** Response to Employer's Objection to Con-Arb — 26 December 2025 (CCMA Case WECT24486-25): objection characterised as deliberate delay tactic

SECTION D: Discrimination

- D1 (SCR1):** Teams Chat Screenshot — 23 September 2025: deliberate public misgendering of Applicant as 'Wilma' by Ms. Jones in team-wide communication; simultaneous banning of Filtering Strategy
- D2 (TYP1):** Email — October 2025: Ms. Mashele dismisses misgendering as a 'typo' and asserts Applicant and Ms. Jones 'never had any previous problem' (demonstrably false)
- D3 (ONE1):** Email — 25 September 2025: Operational Manager Ms. Nkatane's directive for one-on-one meeting with Ms. Jones (perpetrator of discrimination) as sole remedy
- D4 (FR1):** Escalation to HR and Union — 25 September 2025: referral back to same department implicated in discrimination; failure to provide impartial mechanism
- D5 (TYPO):** Email — October 2025: Ms. Mashele's characterisation of gender identity concerns as a 'typo'; direct contradiction of documented complaint history

SECTION E: Unlawful Deductions

- E0 (LIE1):** Email — Staggered Debt Refusal: 'The company does not stagger debt'; 'you won't miss the chunk of money' — managerial misrepresentation of statutory position
- E1 (PS1):** June 2025 Payslip — UIF deduction of R177.12 reflected but not declared or remitted to Fund by statutory deadline of 7 July 2025
- E2 (PS2):** July 2025 Payslip — total deduction of R14,811.77 (40.47% of gross salary); unlawful in terms of BCEA s34(1) and s34(2)
- E3 (POL1):** Teams Chat — 24 July 2025: Ms. Jones shares company policy (deductions must not exceed 25% of CTC); when confronted with breach responds 'What is illegal'

- E4 (REV1):** Request for Review of Unlawful Deduction — 2 November 2025: formal written request expressly citing BCEA s34; Respondent failed to respond
- E5 (REV2):** Follow-up Email — 12 November 2025: continued non-response from Respondent; later falsely claimed Applicant 'failed to follow procedure' in CCMA affidavit
- E6 (ULP1):** Double Unpaid Leave Entry — 29 September 2025: retaliatory punitive deduction loaded the same date as Applicant's formal discrimination complaint; reversed by Ms. Mashele on 1 October 2025
- E7 (SCR0):** uFiling Screenshot — June 2025: 'No Information' for UIF declaration confirming Respondent's failure to remit contributions in breach of UICA s6
- E8 (AMR1):** Absence Management Review Notes — 24 June 2025: 'bunching' of 40%+ deduction into single pay cycle during active psychiatric admission
- E9 (RPM1):** 'Oracle Instruction' Email — 21 May 2025: instruction to 'load unpaid leave' during psychiatric crisis without reference to reasonable accommodation or alternative measures

SECTION F: Grievances and Meetings

- F1 (FG1):** Formal Grievance — Gender Discrimination, 25 September 2025
- F2 (FG2):** Formal Grievance — Strategic Entrapment and Systematic Gaslighting, 2 November 2025: 30-day silence by Respondent; request for removal from Ms. Jones's authority
- F3 (FG3):** Formal Grievance — Hostile Environment and Final Protected Disclosure, 4 December 2025: formal notice to Executive Leadership; 14-day response window elapsed without acknowledgement
- F4 (T2):** Transcript of Video-Recorded Meeting — 31 October 2025: direct verbal admission of retaliatory motive by Ms. Jones: 'You made a case of harassment against me so I can make a case of harassment against you'
- F5 (HTV1):** Email — Hostile Tone from Ms. Jones, 6 October 2025: criticism of Applicant's 'choosing of words' following formal discrimination complaint
- F6 (VICT1):** Email — Victimisation Post-Disclosure, 23 October 2025: escalation of hostile conduct following patient safety disclosure
- F7 (IMP1):** Impact Statement Draft — 2 November 2025: contemporaneous record of fear, anxiety, and psychological harm; too intimidated to send — itself evidence of severity of hostile environment
- F8 (UNI1):** Pilot Study Agreement — Selective instruction to return to office (31 October 2025) not issued to other participants; confirmed by peer responses in Teams group

SECTION G: Suppression and Dismissal

- G0 (DES1):** Executive Leadership De-escalation Email — 5 December 2025: matter referred back to implicated department; secondary victimisation; deadlock declared
- G1 (CRO1):** CRO 'Cease Communication' Email — 18 December 2025: instruction by Chief Risk Officer Mr. Monwabisi Kula to cease communications with Board oversight committees
- G2 (RES1):** Resignation Letter — 12 December 2025: Formal Notice of Resignation due to Automatically Unfair Constructive Dismissal addressed to Board of Directors and CEO Mr. Gerald Van Wyk
- G3 (RCA1):** Rule 17A Response to Oppose Con-Arb — Respondent's procedural objection characterised as delay tactic

- G4 (HWE1):** Email — Reprimand for Long Call, 3 December 2025: reprimand for assisting a member; unilateral imposition of overtime for Applicant's own account
- G5 (HWE2):** Email — Applicant's Response to Long Call Reprimand, 3 December 2025: documenting inconsistent enforcement; 11-hour days previously required; unilateral contract variation
- G6 (DEC1):** Deadlock Email — 5 December 2025: Applicant's refusal of meeting without recording and written safeguards; General Manager's refusal; notice of P1 Risk Report to Board
- G7 (PILO1):** Pilot Study Teams Chat — 31 October 2025: evidence that selective office return instruction was not issued to other pilot participants

SECTION H: Retaliatory Affidavit

- H1 (OA1):** Respondent's CCMA Opposing Affidavit — 10 December 2025 (filed by Mr. Xollie Vincent Manyati): characterises Applicant as 'untruthful'; dismisses severe mental illness as 'excuse'; seeks punitive costs against destitute employee — constitutes defamation and occupational detriment
- H2 (RA1):** Applicant's Replying Affidavit — 11 December 2025: formal response to character assassination in Respondent's sworn affidavit

SECTION I: Resulting Harm

- I1 (EVIC1):** Eviction Notice — November 2025: formal notice of eviction arising directly from unlawful salary deductions; contemporaneous evidence of financial destitution
- I2 (SANC2):** SANC Deregistration Notice — 31 December 2025: professional nursing licence suspended due to inability to pay R870.00 registration fee caused by Respondent's financial sabotage; 15-year career extinguished
- I3 (PSY1):** Psychological Impact Documentation — evidence of exacerbation of Severe Major Depressive Disorder and PTSD
- I4:** Proof of Medical Aid Loss — evidence of loss of medical aid coverage as consequence of destitution

SECTION J: Regulator Notifications and Acknowledgements

- J1 (REG1):** JSE Limited — Issuer Regulation Division: acknowledgement of receipt of 325-page Evidence Bundle; material governance failures and director misconduct
- J2 (REG2):** B-BBEE Commission: formal acknowledgement of complaint; potential fronting and B-BBEE Act violations
- J3 (REG3):** Financial Sector Conduct Authority (FSCA): confirmation of filing via FSCA portal; conduct unbecoming of financial services provider and systemic risk
- J4 (REG4):** Council for Medical Schemes (CMS): CMS declined jurisdiction — referred to HPCSA (4 Feb 2026) — GEMS Ref: 000655789; Gexus/DMS integration failure; incorrect non-adherence letters to GEMS members; direct patient harm risk
- J5 (REG5):** South African Human Rights Commission (SAHRC): formal acknowledgement; referral to relevant department; gender identity and mental health disability discrimination
- J6 (REG6):** Department of Employment and Labour (DEL): filed; unfair labour practices, BCEA violations, unlawful deductions, UIF non-compliance

SECTION K: CCMA and Procedural Documents

- K1:** Certificate of Non-Resolution — CCMA (both matters): issued following conciliation on 9 January 2026; jurisdictional prerequisite for Labour Court proceedings satisfied

- K2:** CCMA Referral Form — 5 December 2025: referral of constructive dismissal / automatically unfair dismissal
- K3 (NRE1):** Notification of Regulator Escalation to CCMA — 26 December 2025 (Case WECT24486-25): formal notice that nine regulators had been seized with the matter
- K4 (CCC1):** Formal CCMA Complaint Acknowledgement — 10 January 2026

SECTION L: Post-Resignation Obstruction

- L1 (EXIT1):** Request for UI-19 and Exit Documents — 7 January 2026: formal request to HR for statutory exit documentation; no response received
- L2 (EXIT2):** Follow-up and Statutory Non-Compliance Notice — 14–15 January 2026: bad-faith verification requests by HR; uFiling screenshot confirming June 2025 non-declaration; final demand issued
- L3 (EXIT3):** Notice of Statutory Non-Compliance — 15 January 2026: formal objection to Certificate of Service misrepresentation; demand for correction by 19 January 2026
- L4 (CERT1):** Certificate of Service and Formal Objection — 19 January 2026: Respondent issues Certificate listing 'Care Coordinator' instead of Case Manager; directly contradicted by Naming Convention recording
- L5 (NCD1):** Demand for 'Naming Convention' Meeting Recording — 19 January 2026: formal request for full and unaltered Teams recording in Respondent's exclusive possession
- L6 (PS3):** Screenshot of Updated Title Post Naming Convention: Applicant's updated email signature reflecting Case Manager designation as instructed by Operational Manager Ms. Nkatane
- L7 (KWA1):** Notice of Intent — 9 January 2026: withdrawal of R2.5 million settlement offer; minimum claim increased to R10 million; election to pursue Labour Court proceedings
- L8 (SANC2):** Urgent Notification of Professional Deregistration via Occupational Detriment — 9 January 2026: formal SANC notification that deregistration was caused by Respondent's unlawful conduct

SECTION M: Pre-Filing Compliance Remediation Attempt

- M1 (CRN1):** Compliance Remediation and Statutory Restitution Notice — February 2026: Board-level notice of seven confirmed statutory breaches, six regulatory consequence entries, full remediation schedule, structured payment framework and conditions for regulatory withdrawal
- M2 (CRN2):** Response Record / Proof of Non-Response — documentary evidence confirming Respondent's failure to engage with the Compliance Remediation Notice within the 10 business day response period
- M3 (CRN3):** Proof of Service — evidence of simultaneous delivery to Board of Directors, Lead Independent Director, Audit Committee Chairman, Social and Ethics Committee Chairman, Company Secretary, CRO and CEO

SECTION N: February 2026 Regulatory Filings and Corrections

- N1 (SANC1):** SANC Professional Misconduct Complaint — 10 February 2026: complaint against RNs Mary-Ann Jones and Mapule Mashele under Nursing Act s56
- N2 (SANC2):** SANC Complaint Correction — 16 February 2026: proactive correction clarifying CMS characterisation
- N3 (SANC3):** Ministerial Escalation to Minister of Health — 16 February 2026: escalation regarding SANC 6-day statutory silence and administrative inaction

N4 (SAPC1): SAPC Unprofessional Conduct Complaint — 16 February 2026: complaint against Lisa Mari, Responsible Pharmacist, under Pharmacy Act s49

N5 (SAPC2): SAPC Complaint Correction — 16 February 2026: proactive correction clarifying CMS characterisation

N6 (DEL1): DEL Integrated Workplace Inspection Request — 16 February 2026: request to Inspector Ms. Ngalo for BCEA/UICA/OHSA inspection at Medscheme Holdings

N7 (DEL2): DEL Inspection Request Correction — 16 February 2026: proactive clarification that absence of written H&S appointment letter is itself an OHSA Regulation 8 violation

NOTE: The Applicant reserves the right to supplement this Annexure Index with additional documents as they become available, including formal case reference numbers issued by the SAHRC, CMS, FSCA, B-BBEE Commission and DEL. The 325-page Evidence Bundle referred to in the regulator communications constitutes the Applicant's complete forensic dossier and is available for inspection by this Honourable Court on request.